# Report on Crimes Against Humanity Committed by Hong Kong Government Officials in Hong Kong and Several Other Places

## FACTUAL SUMMARY

### Executive Summary

1. This report documents information providing a reasonable basis to believe that, since 2019 – and with substantial institutional expansion following the enactment of the Law of the People's Republic of China on Safeguarding National Security in the Hong Kong Special Administrative Region ("HKNSL") on 30 June 2020 – the authorities of the Hong Kong Special Administrative Region ("HKSAR") and the People's Republic of China have carried out a widespread or systematic attack directed against an identifiable civilian population on political grounds within the meaning of Article 7 of the Rome Statute and customary international criminal law.
2. The civilian population targeted consists principally of participants in and supporters of the Hong Kong pro-democracy movement and, more broadly, persons identified by the authorities through actual or perceived political opinion, expression, association, journalism, civil-society activity, political participation or opposition to the prevailing political order. The affected population includes protesters, opposition politicians, journalists, editors, trade unionists, civil-society organisers, students, children, religious figures, human-rights defenders and members of the exiled Hong Kong pro-democracy community.
3. The principal crimes alleged are imprisonment or other severe deprivation of physical liberty in violation of fundamental rules of international law under Article 7(1)(e), and persecution on political grounds under Article 7(1)(h). The evidence concerning custodial beatings, prolonged solitary confinement, sexual violence and other serious mistreatment provides additional support for allegations under Articles 7(1)(f), 7(1)(g) and 7(1)(k).
4. The alleged attack has been implemented through an integrated State apparatus rather than through isolated acts of individual misconduct. Relevant institutions include the Hong Kong Police Force and its National Security Department, the Department of

Justice, specialised national-security bodies, designated national-security judges, the Correctional Services Department, the Security Bureau, the Committee for Safeguarding National Security and other executive and administrative institutions. The system operates through legislation, arrest and investigative powers, restrictive bail provisions, prosecution, adjudication, imprisonment, correctional measures and continuing restrictions after release.

**5.** The scale and duration of the conduct support its widespread character. More than 10,000 persons were arrested in connection with the 2019 protests and related political activity. Approximately 2,200 persons have been sent to prison on politically related charges since 2019. During the first six months of the 2019 protests, the authorities acknowledged approximately 16,000 discharges of tear gas, approximately 13,900 rounds of ammunition of various types, and approximately 2,600 persons seeking emergency medical treatment in public hospitals in connection with protest-related events. Children were among those arrested and subjected to custodial and national-security measures.

**6.** The systematic character of the attack is demonstrated by the repeated use of substantially similar measures against different sectors of civilian society over a period of years. Opposition politicians were imprisoned for organising and participating in an electoral primary; journalists and editors were prosecuted for political publications; the leaders of the organisation that for three decades organised the commemoration of those killed in the Tiananmen Square massacre on 4 June 1989 were sentenced to up to seven years and three months' imprisonment for incitement to subversion; professionals were imprisoned for allegorical children's books; students were prosecuted for low-reach political expression; and elderly or seriously ill activists were imprisoned for planned symbolic protest. These cases demonstrate a recurring pattern directed at political expression and participation rather than a narrow campaign against violent conduct.

**7.** The deprivation of liberty has been reinforced by a differentiated national-security procedural regime. Relevant measures include the reverse presumption against bail under Article 42(2) of the HKNSL, prolonged pre-trial detention, extended detention powers, restrictions upon access to chosen legal representatives, removal of trial by jury in specified national-security cases, adjudication by judges designated under the

national-security framework, compulsory information-gathering powers and binding executive certificates on specified national-security questions.

**8.** Independent international findings substantially reinforce the allegation of arbitrary political detention. The United Nations Working Group on Arbitrary Detention has found the detention of prominent Hong Kong political defendants, including Chow Hang-tung, Jimmy Lai and Owen Chow Ka-shing, to be arbitrary. United Nations mechanisms have additionally raised concerns regarding prolonged solitary confinement, judicial independence, the reverse bail regime and allegations that evidence used in national-security proceedings was obtained through torture. The continued maintenance and expansion of the same system after repeated international notice supports the inference that its operation reflects State policy rather than inadvertence, institutional error or isolated misconduct.

**9.** The alleged attack also encompasses the response of State institutions to violence against the targeted political population. The events at Yuen Long on 21 July 2019 are particularly significant. The evidence includes public statements preceding the attack calling for action against protesters, advance warnings received by police, prolonged non-intervention while organised groups assaulted civilians, subsequent official characterisation of the violence as a clash, selective enforcement affecting persons associated with the protest movement, and the rejection of demands for an independent inquiry. Taken cumulatively, these circumstances support an inference of State acquiescence rather than an isolated or accidental failure of police response. *(See EXHIBITS C6–C11)*

**10.** The same institutional pattern is reflected in the suppression of efforts to pursue accountability. Private prosecutions concerning the close-range shooting of an unarmed protester by a police officer and an alleged vehicle attack upon demonstrators were permitted by magistrates to proceed but were subsequently terminated through intervention by the Department of Justice. The political figure who initiated those proceedings, Hui Chi-fung (Ted Hui), later became the subject of a national-security arrest warrant and public bounty. *(See EXHIBITS C20–C22 & F1)*

**11.** Since 2023, the attack has acquired an expressly transnational component directed against members of the same political population after they left Hong Kong. The overseas programme includes arrest warrants, public monetary bounties, statutory

"specified absconder" measures, financial and professional restrictions, threats against persons providing support, reprisals against family members, and organised surveillance and intelligence-gathering abroad.

**12.** Senior officials expressly acknowledged and endorsed the international reach of that programme. Chief Executive John Lee Ka-chiu stated that wanted political opponents would be pursued "for life", would live "in fear every day", and that Hong Kong's national-security legislation possessed "the same power of taking extraterritorial action against criminals" as the laws of other States. Secretary for Security Chris Tang Ping-keung stated that the authorities would identify the contacts, associates and financiers of wanted persons "in Hong Kong or overseas" and repeatedly threatened continuing pursuit and isolation of those targeted. *(See EXHIBITS F5–F16)*

**13.** The bounty programme itself solicited information concerning the movements and circumstances of named dissidents residing abroad and invited persons "in Hong Kong or overseas" to provide such intelligence. It thereby created a direct incentive to locate, monitor and report upon political opponents residing in foreign States. The authorities also expressly referred to persons who had "sought protection from foreign countries", while the programme provided means of continuing their pursuit notwithstanding the practical limits of ordinary inter-State legal cooperation. *(See EXHIBITS F8 & F17)*

**14.** The clearest territorial nexus under Article 12(2)(a) concerns the United Kingdom, a State Party to the Rome Statute. Criminal proceedings, official records and judicial findings establish that surveillance, operational tasking, acquisition and transmission of personal information, misuse of United Kingdom government systems, deception and other operational activity were physically carried out in the United Kingdom against persons associated with the exiled Hong Kong pro-democracy community. Payments connected with such operations were made through the Hong Kong Economic and Trade Office in London. Following a contested trial, two participants were convicted, and United Kingdom authorities identified the relevant foreign intelligence service as the Hong Kong Police Force and described the activities as a "shadow policing operation" and transnational repression. *(See EXHIBITS F28–F37)*

**15.** The United Kingdom conduct provides concrete territorial conduct capable of forming part of the alleged persecution under Article 7(1)(h). The jurisdictional case therefore

rests upon constituent conduct occurring on the territory of a State Party, considered together with the wider programme of bounties, intelligence-gathering, financial restrictions, intimidation and continuing pursuit of the same identifiable political population. Separately, Article 12(2)(b) may provide jurisdiction over particular alleged perpetrators who are established to be nationals of the United Kingdom, Portugal or another State Party.

**16.** Complementarity does not presently bar further examination of the principal potential cases identified in this report. The United Kingdom has genuinely prosecuted operational actors Chung Biu (Bill) Yuen and Chi Leung (Peter) Wai for conduct carried out within the United Kingdom, but those proceedings concerned different accused persons from the senior Hong Kong officials identified here. Likewise, the prosecution in Hong Kong of persons alleged to be victims of political persecution does not constitute investigation or prosecution of the officials alleged to have designed, directed, implemented or contributed to that persecution. No domestic proceeding identified in the present record investigates or prosecutes John Lee Ka-chiu or Chris Tang Ping-keung for substantially the same conduct forming the basis of the potential cases described in this report. The detailed Article 17 analysis is set out in Part 13.

**17.** The evidence is presently strongest in relation to the senior executive role and direct conduct of Chief Executive John Lee Ka-chiu and Secretary for Security Chris Tang Ping-keung. Their successive institutional authority, repeated public direction and endorsement of national-security measures, participation in the maintenance and expansion of the relevant State apparatus, and direct involvement in the overseas pursuit programme provide a substantial basis for examination of their individual criminal responsibility under Article 25 and, where the statutory elements are established, Article 28 of the Rome Statute.

**18.** Taken as a whole, the information submitted provides a reasonable basis to believe that imprisonment and political persecution have been committed as part of a widespread or systematic attack directed against an identifiable civilian population pursuant to or in furtherance of State policy. Neither Article 7 nor the applicable jurisprudence requires murder, extermination, mass killing or armed conflict as a prerequisite to crimes against humanity. Imprisonment and persecution are themselves

expressly enumerated crimes that were committed within the contextual attack required by Article 7.

## Part 1. Jurisdiction of the International Criminal Court (ICC)

### A. Jurisdiction Based on Nationality – Article 12(2)(b)

**19.** Article 12(2)(b) of the Rome Statute provides that the ICC may exercise jurisdiction where the person accused of a crime within the jurisdiction of the ICC is a national of a State Party. The United Kingdom and Portugal are States Parties to the Rome Statute.

**20.** British National (Overseas) [BN(O)] is a form of British nationality recognised under United Kingdom law. Section 67(1) of the International Criminal Court Act 2001 (U.K.) expressly includes a British National (Overseas), together with a British citizen and certain other categories of British nationality, within the statutory definition of a "United Kingdom national" for the purposes of Part 5 of that Act. *(See EXHIBITS A1 & A2)*

**21.** Persons connected with Hong Kong who qualified for BN(O) status could acquire that status by registration before 1 July 1997.

**22.** Certain Hong Kong residents separately acquired full British citizenship under the British Nationality (Hong Kong) Act 1990 or through other provisions of British nationality law. Certain individuals may likewise possess the nationality of other States Parties, including Portugal. *(See EXHIBIT A4)*

**23.** Where reliable information establishes that an individual is a British citizen, British National (Overseas), Portuguese citizen, or otherwise a national of a State Party, that information is identified in the relevant individual-liability section. Where the available public record establishes only a reasonable possibility of such nationality, the report identifies nationality as a matter requiring further verification rather than presenting it as an established fact.

**24.** Section 67 of the International Criminal Court Act 2001 confirms that the United Kingdom implementing legislation expressly recognises British National (Overseas) status within its definition of a "United Kingdom national". For Article 12(2)(b), the decisive factual question is whether the particular accused is a national of a State Party.

**25.** Where a person identified in this report is established to be a national of the United Kingdom, Portugal or another State Party, the ICC may exercise jurisdiction under

Article 12(2)(b) over crimes within its jurisdiction allegedly committed by that person, irrespective of whether the underlying conduct occurred in Hong Kong or elsewhere.

## B. Treatment of Nationality Where the Public Record Is Inconclusive

**26.** For certain persons identified in the Individual Liability section, publicly available information concerning nationality is incomplete. In those circumstances, this report does not make a conclusive allegation of State-Party nationality.

**27.** The relevant individual profiles should therefore be understood as identifying a potential jurisdictional basis requiring verification. Where appropriate, the Office of the Prosecutor may seek confirmation of nationality through the ordinary exercise of its investigative and cooperation functions if it determines that further examination or investigation is warranted.

## C. Territorial Jurisdiction – Article 12(2)(a)

**28.** A separate and independent jurisdictional basis arises under Article 12(2)(a) from conduct occurring on the territory of States Parties.

**29.** The principal policy alleged in this report was formulated and implemented substantially in Hong Kong, which is not itself territory of a State Party to the Rome Statute. The alleged course of conduct, however, has not remained wholly within Hong Kong. Since at least 2023, components of the alleged programme of persecution against the exiled Hong Kong pro-democracy community have been carried out within the territory of States Parties, most concretely within the United Kingdom.

**30.** The ICC's jurisprudence concerning the Situation in Bangladesh/Myanmar establishes that Article 12(2)(a) may be satisfied where at least one element of a crime within the jurisdiction of the ICC, or part of such a crime, is committed on the territory of a State Party. The fact that other elements or related conduct occur within the territory of a non-State Party does not, by itself, exclude the ICC's jurisdiction.

**31.** The territorial inquiry under Article 12(2)(a) is whether conduct constituting an element, or part of the commission, of an alleged Rome Statute crime occurred within

the territory of a State Party. The clearest territorial manifestation of the alleged overseas persecution concerns the United Kingdom.

**32.** Evidence described in Part 10 establishes that an operational apparatus connected to the Hong Kong Economic and Trade Office in London conducted surveillance and information-gathering against Hong Kong dissidents and other persons present in the United Kingdom. The activities included operational tasking, surveillance, acquisition and transmission of personal information, identification of addresses and movements, misuse of United Kingdom government systems, payments through the London bank account of the Hong Kong Economic and Trade Office ("HKETO"), deception and other operational conduct physically carried out in the United Kingdom. *(See EXHIBITS F28–F37)*

**33.** The United Kingdom proceedings further established links between requests and interests originating from Hong Kong, HKETO personnel and funding in London, and persons carrying out operations within the United Kingdom. Two participants were convicted following a contested criminal trial. The United Kingdom Security Minister identified the relevant foreign intelligence service as the Hong Kong Police Force, while the sentencing court and prosecution materials described the activities as "shadow policing operations" and transnational repression. *(See EXHIBITS F28, F31 & F35–F37)*

**34.** These acts constitute concrete conduct on the territory of a State Party, rather than merely overseas consequences of decisions taken in Hong Kong. Where such surveillance, information-gathering, intimidation and interference formed part of the intentional and severe deprivation of fundamental rights of persons targeted because of political opinion, they are capable of forming constituent conduct of the persecution alleged under Article 7(1)(h).

**35.** The arrest warrants, public bounties, "specified absconder" measures, restrictions on financial support, denunciation of overseas activists and reprisals against family members provide the wider factual context in which the United Kingdom operations occurred. They demonstrate the discriminatory purpose, intended international scope and organised character of the same alleged persecutory programme.

**36.** The same territorial principle applies to Canada, Germany, Australia and other States Parties where the evidence establishes conduct or a constitutive element of the alleged

crime on their territory. Accordingly, Article 12(2)(a) is advanced on the basis of the concrete territorial components of the alleged crimes, with the United Kingdom evidence presently providing the clearest and most developed territorial nexus.

## Part 2. Alleged Offences and Article 7 Framework

**37.** Beginning in or around June 2019, and intensifying markedly following the enactment of the Hong Kong National Security Law ("HKNSL") on 30 June 2020, and again following the enactment of the Safeguarding National Security Ordinance in March 2024, the authorities of the Hong Kong Special Administrative Region and of the People's Republic of China have engaged in a sustained course of conduct directed against persons identified by reason of their political opinions, expression, associations, or perceived opposition to the prevailing political order.

**38.** The information set out in this report provides a reasonable basis for further examination of whether that course of conduct satisfies the contextual and material elements of crimes against humanity under Article 7 of the Rome Statute.

### A. Contextual Elements under Article 7

#### Civilian population

**39.** The civilian population alleged to have been targeted consists principally of participants in and supporters of the Hong Kong pro-democracy movement and, more broadly, persons identified by the authorities as opposing, criticising, or challenging the prevailing political order.

**40.** The affected population includes protesters, political activists, former legislators, opposition politicians, journalists, editors, trade unionists, civil-society organisers, students, children, human-rights defenders, religious figures, and members of the exiled Hong Kong pro-democracy community.

**41.** The population is not defined by membership in any single political organisation. Rather, the common identifying characteristic reflected in the available evidence is actual or perceived political opinion, political expression, association with the pro-democracy movement, or other conduct regarded by the authorities as oppositional or threatening to "national security".

**Course of conduct directed against the civilian population**

**42.** For the purposes of Article 7, the alleged "attack" is not alleged to consist solely, or principally, of physical violence during street protests. It consists of the broader course of conduct described throughout this report, involving the repeated use of State institutions and legal, administrative, law-enforcement and correctional mechanisms against the identified civilian population.

**43.** The conduct relied upon includes, among other matters:

- mass arrest and detention in connection with political protest and expression;
- prolonged pre-trial detention resulting from restrictive national-security bail provisions;
- imprisonment for peaceful political expression, journalism, political organisation and participation;
- the use of national-security and sedition legislation against conduct protected under international human-rights law;
- restrictions upon access to legal representation, trial by jury and other procedural safeguards;
- serious mistreatment of persons in custody, including allegations of torture, sexual violence and prolonged solitary confinement;
- coercive measures affecting children and young persons identified through political activity;
- the use of administrative and correctional measures to impose additional restrictions upon persons convicted of national-security offences; and
- the programme of transnational repression directed against members of the same political population after they left Hong Kong, including arrest warrants, monetary bounties, surveillance, intelligence-gathering, financial restrictions and reprisals against family members.

These measures are alleged to constitute interconnected components of a continuing course of conduct rather than unrelated incidents occurring independently of one another.

**Widespread character**

**44.** The available information is capable of supporting the widespread character of the alleged attack.

**45.** More than 10,000 persons were arrested in connection with the 2019 protests and related political activity. Approximately 2,200 persons have reportedly been imprisoned on politically related charges since 2019. The conduct has affected persons across different age groups, professions and forms of political participation and has continued over a period of years.

**46.** The scale of arrests, prosecutions, imprisonment and related measures is supplemented by evidence concerning the extensive use of force during the 2019 protests, the subsequent prosecution and detention of opposition politicians and civil-society figures, and the continued application of national-security measures to political expression after the street protests had largely ceased.

**47.** The alleged attack has also extended beyond Hong Kong through measures directed at members of the same political population residing overseas, as described in Part 10.

**Systematic character**

**48.** The available information is also capable of supporting the systematic character of the alleged attack.

**49.** The relevant conduct has not been carried out by a single institution or through isolated discretionary decisions. It has involved, at different stages, the Hong Kong Police Force, the National Security Department, the Department of Justice, national-security prosecutors, designated national-security courts and judges, the Correctional Services Department, the Security Bureau, the Committee for Safeguarding National Security, and other governmental bodies.

**50.** The conduct has been implemented through legislation, formal administrative structures, dedicated national-security institutions, recurring prosecutorial practices, statutory restrictions upon bail and procedural rights, correctional measures, and publicly announced programmes directed against political opponents inside and outside Hong Kong.

**51.** The repetition of substantially similar measures against persons identified through political opinion or activity, their continuation over several years, and their implementation across multiple organs of the State are capable of supporting the inference of an organised and regular pattern rather than accidental or isolated misconduct.

**State policy**

**52.** The information further provides a basis for examining whether the alleged acts were committed pursuant to or in furtherance of a State policy within the meaning of Article 7(2)(a).

**53.** The relevant measures were implemented through formal State structures and legal instruments, including the HKNSL, the Safeguarding National Security Ordinance, the National Security Department of the Hong Kong Police Force, the Committee for Safeguarding National Security, national-security prosecutorial arrangements, designated national-security judges, specialised detention and correctional rules, and statutory measures directed at persons residing overseas.

**54.** Senior officials have repeatedly and publicly endorsed the enforcement of these measures, described political opponents as threats to national security, affirmed the continuing pursuit of persons residing overseas, and defended the institutional mechanisms through which the measures have been implemented.

**55.** The existence of a State policy is therefore not alleged solely on the basis of individual inflammatory statements or isolated instances of misconduct. It is to be assessed from the cumulative operation of legislation, State institutions, official enforcement practices, resource allocation, repeated public directives and the sustained use of State authority against an identifiable political population.

**Knowledge of the attack**

**56.** The contextual requirement of knowledge must ultimately be established in relation to each individual whose criminal responsibility may be examined.

**57.** For senior officials, the scale, duration and public character of the course of conduct provide substantial evidence of awareness that individual acts formed part of a broader campaign directed against the identified civilian population.

**58.** That inference is reinforced by repeated public announcements and defence of national-security measures, extensive reporting of arrests and detention, formal legislative enactments, judicial and administrative decisions, international criticism, United Nations findings and official responses to those findings.

**59.** Individual intent, knowledge and modes of liability remain separate questions and are addressed, where appropriate, in the accompanying Individual Liability materials.

## B. Principal Underlying Acts

**60.** The present report relies principally upon two interrelated categories of underlying acts: imprisonment or other severe deprivation of physical liberty under Article 7(1)(e), and persecution on political grounds under Article 7(1)(h).

**61.** The report relies principally on Articles 7(1)(e) and 7(1)(h). Evidence concerning torture, sexual violence and other inhumane acts under Articles 7(1)(f), 7(1)(g) and 7(1)(k) further strengthens the Article 7 analysis and is addressed separately below.

## Article 7(1)(e) – Imprisonment or other severe deprivation of physical liberty in violation of fundamental rules of international law

**62.** The conduct relevant to Article 7(1)(e) includes:

- The mass arrest, detention and imprisonment of protesters, political activists, former legislators, journalists and others in connection with the exercise of freedom of expression, peaceful assembly, association and political participation.
- The application of national-security offences to peaceful political and expressive conduct that international human-rights bodies and organisations have identified as conduct that should not have been criminalised.
- An analysis of national-security cases contained in *EXHIBIT C34* found that

bail was denied in approximately 89 per cent of the cases examined, with an average period of pre-trial detention of approximately 11 months. This pattern, operating under the reverse presumption contained in Article 42 of the HKNSL, has resulted in prolonged pre-trial imprisonment of political defendants, in some cases extending for years before trial. *(See EXHIBIT C34)*

- The detention of persons whose deprivation of liberty has subsequently been determined by the United Nations Working Group on Arbitrary Detention to be arbitrary and incompatible with fundamental international human-rights standards. *(See EXHIBITS B4, B5 & B10)*
- The use of Care and Protection Orders under the Protection of Children and Juveniles Ordinance (Cap. 213) against minors who had not been charged with criminal offences, including the detention of a 13-year-old for 27 days with restrictions upon contact with her family before a magistrate rejected the application. *(See EXHIBIT C35)*

**63.** The existence of domestic legislation authorising detention does not, by itself, determine whether the deprivation of liberty complies with fundamental rules of international law. The relevant inquiry includes the substantive basis for detention, its duration, procedural safeguards, discriminatory character, and the relationship between the detention and the exercise of internationally protected rights.

**Article 7(1)(h) – Persecution against an identifiable group on political grounds**

**64.** The information described throughout this report is also relevant to persecution under Article 7(1)(h), through the intentional and severe deprivation of fundamental rights of persons identified by reason of political opinion or political activity, in connection with other acts described in Article 7(1), particularly imprisonment and severe deprivation of physical liberty.

The conduct relied upon includes:

- the sustained use of criminal proceedings, detention and imprisonment against persons identified through their participation in or support for the pro-democracy movement.
- the dismantling of political opposition, independent media organisations, trade unions and civil-society organisations through criminal proceedings and national-security enforcement directed at their political activities.
- the imprisonment of persons for peaceful expression, publication, journalism, political slogans, peaceful political organisation and other non-violent forms of participation.
- the direction of criminal proceedings against conduct protected by the rights to freedom of expression, assembly, association and political participation. An analysis of concluded national-security cases found that approximately 85 per cent involved only the legitimate exercise of freedom of expression that should not have been criminalised. (*See EXHIBIT C34*)
- the systematic use of national-security procedural restrictions against political defendants, including the reverse presumption against bail, removal of trial by jury, restrictions upon access to counsel of one's choosing, and the assignment of specially designated national-security judges.
- the continued threat of prosecution against approximately 7,000 persons arrested in connection with the 2019 protests but not charged, whose cases have reportedly remained open for years and have been linked to "rehabilitation", "re-education" or political-assimilation measures. *(See EXHIBIT C35)*
- the programme of transnational repression against exiled members of the same political population, including arrest warrants, public monetary bounties, "specified absconder" measures, surveillance and intelligence-gathering, restrictions upon financial support, and reprisals against family members, as described in Part 10.

**65.** Taken cumulatively, these acts demonstrate the use of State power to impose severe deprivations of fundamental rights upon an identifiable population because of actual

or perceived political opinion, in connection with imprisonment and other conduct falling within Article 7.

## C. Additional Underlying Acts Requiring Further Examination

### Article 7(1)(f) – Torture

**66.** The available information further warrants examination of alleged torture committed against persons in custody or under the control of State authorities.

Relevant information includes:

- severe beatings and injuries reported among persons detained at the San Uk Ling Holding Centre and other detention facilities;
- allegations that detainees were subjected to treatment deliberately calculated to inflict serious physical suffering while avoiding visible evidence of injury;
- prolonged solitary confinement of certain political detainees, including periods substantially exceeding the 15-day threshold identified in the Nelson Mandela Rules as prolonged solitary confinement; and
- other physical and psychological abuse described in Parts 3, 8 and 9 and the accompanying exhibits.

**67.** Taken together, these facts support examination under Article 7(1)(f), with the severity, purpose and connection to the broader attack assessed on the evidence relating to each incident.

### Article 7(1)(g) – Rape or other forms of sexual violence

**68.** Available information further contains serious allegations of rape and other forms of sexual violence in custodial settings.

These include:

- the complaint made by the woman publicly referred to as Ms X, who alleged that she was raped by multiple police officers while in custody, together with the subsequent investigative and prosecutorial conduct directed against her described in Part 3;
- reported sexual assaults and forced strip-searches associated with the San Uk Ling Holding Centre;
- accounts of sexual violence against young persons in custodial institutions; and
- the assault at Pik Uk Correctional Institution in which a correctional officer, acting together with inmates, penetrated an 18-year-old remand prisoner with a wooden stick, causing permanent injury. *(See EXHIBITS C34 & C35)*

**69.** The evidentiary record distinguishes between adjudicated and unadjudicated incidents. The Pik Uk penetrative assault is established by a criminal conviction; the allegations concerning Ms X, San Uk Ling and other custodial sexual violence remain supported allegations requiring investigation. Their cumulative relevance lies in whether sexual violence formed part of the broader treatment of politically identified detainees.

**Article 7(1)(k) – Other inhumane acts**

**70.** The information also warrants examination of conduct potentially falling within Article 7(1)(k), including acts alleged intentionally to have caused great suffering or serious injury to mental or physical health.

Relevant conduct includes:

- the disproportionate and potentially lethal use of force against civilians during the 2019 protests, including live ammunition, close-range shootings and the use of chemical agents in enclosed or densely populated areas;
- serious interference with access to medical treatment for injured or detained persons;

- coercive custodial and post-custodial measures capable of causing serious physical or psychological harm;
- the cumulative imposition of severe financial, civil and professional restrictions against political dissidents residing overseas; and
- coercive measures directed against family members for the purpose of isolating, punishing or exerting pressure upon persons targeted for their political activities.

These acts support an additional characterisation under Article 7(1)(k) where the evidence establishes the required gravity and resulting suffering.

## Part 3. Background, the 2019 Crackdown, and Domestic Accountability

**71.** Following the end of British administration on 1 July 1997, Hong Kong became a Special Administrative Region ("HKSAR") of the People's Republic of China ("PRC" or "China"), retaining a separate common-law legal system and socio-economic system under the constitutional framework of "One Country, Two Systems".

**72.** Under the 1984 Sino-British Joint Declaration, the Chinese Government undertook that Hong Kong's capitalist system and way of life would remain unchanged for 50 years after 1 July 1997 and that the HKSAR would enjoy a high degree of autonomy except in foreign and defence affairs. *(See EXHIBIT B1)*

**73.** The International Covenant on Civil and Political Rights ("ICCPR") was extended to Hong Kong by the United Kingdom in 1991. After the transfer of sovereignty, Article 39 of the Basic Law expressly provided that the provisions of the ICCPR as applied to Hong Kong "shall remain in force" and shall be implemented through the laws of the HKSAR. *(See EXHIBITS A3 & A5)*

### A. The 2019 protests and the use of force against civilians

**74.** In 2019, the Hong Kong Government introduced legislation permitting extradition to mainland China. The proposal triggered a mass protest movement that developed into broader demands concerning democratic participation, police accountability and protection of civil and political rights.

**75.** During the first six months of the protests, the authorities officially acknowledged approximately 16,000 discharges of tear gas and the firing of approximately 13,900 rounds of bullets of various kinds. (*See EXHIBIT C1*)

**76.** As of 9 December 2019, the Hong Kong Government acknowledged that approximately 2,600 persons had sought treatment at public-hospital emergency departments in connection with the protests. That figure did not include persons who avoided public hospitals and instead sought treatment through informal medical networks because of concern that information concerning protesters receiving medical treatment could be obtained by the authorities. Police further confirmed that the youngest person arrested during the protests was 11 years old. (*See EXHIBIT C2*)

**77.** The scale of the arrests, injuries and use of force during this period provides the factual background to the subsequent system of prosecution, detention and national-security enforcement described throughout this report.

## B. Allegations of sexual violence and the case of Ms X

**78.** The conduct of police during the 2019 protests included serious allegations of sexual violence against persons in custody. The most extensively documented individual case concerns a woman, then aged 18 and publicly referred to as "Ms X".

**79.** Ms X was arrested and detained at Tsuen Wan Police Station. On 22 October 2019, acting through her lawyers, she lodged a criminal complaint alleging that she had been raped by multiple police officers during her detention. *(See EXHIBIT C23)*

**80.** She subsequently became pregnant and underwent an abortion. Biological material from the foetus was preserved as potential forensic evidence capable of assisting in identifying the alleged perpetrator or perpetrators. *(See EXHIBITS C23 & C27)*

**81.** During the investigation, police obtained a search warrant seeking Ms X's private medical records and closed-circuit television footage from the private clinic she had attended on 4 November 2019. Her lawyers challenged the warrant, and the issuing magistrate suspended it on 5 November 2019. *(See EXHIBITS C23 & C27)*

**82.** The attempted acquisition of her confidential medical records was publicly criticised by the Hong Kong Public Doctors' Association, which stated that disclosure of medical records to police without the knowledge or consent of the patient was incompatible with the professional duty of doctor-patient confidentiality. *(See EXHIBIT C24)*

**83.** The focus of the authorities subsequently shifted towards Ms X herself.

**84.** On 16 November 2019, the police publicly stated that her complaint contained "fake information" and indicated that police would investigate whether she had made a false report. *(See EXHIBIT C23)*

**85.** The Department of Justice subsequently informed Ms X that no further action would be taken on her rape complaint because the allegation was considered inconsistent with evidence obtained by police.

**86.** On 12 May 2020, while the Hong Kong Police Force was under the command of Commissioner Chris Tang Ping-keung, police publicly announced that Ms X was wanted for "making a false statement". By that time she had left Hong Kong. *(See EXHIBITS C23 & C25)*

**87.** The case is relevant both to the allegation of sexual violence in police custody and to the question of accountability. A woman who formally alleged rape by police officers and possessed potentially relevant biological evidence ultimately became the subject of threatened criminal proceedings, while no officer was prosecuted for the alleged rape.

**88.** The treatment of Ms X was also capable of deterring other alleged victims from reporting sexual abuse. Contemporary reporting recorded that other women were reluctant to bring complaints because of her experience and that more than one allegation of rape by police officers had arisen from the protest period. *(See EXHIBIT C23)*

## C. San Uk Ling Holding Centre

**89.** Serious allegations of physical and sexual abuse also arose from the treatment of protesters detained at the San Uk Ling Holding Centre.

**90.** On 11 August 2019, at least 54 arrested persons were transported to San Uk Ling, a detention facility situated close to the boundary with mainland China and far from the principal protest locations.

**91.** Lawyers who travelled to the facility were denied access to their clients for approximately 12 hours, while detainees were reportedly prevented from contacting family members. *(See EXHIBIT C26)*

**92.** A substantial number of detainees subsequently required hospital treatment.

**93.** Police acknowledged that 30 persons detained following the events of 11 August had been hospitalised, including six suffering bone fractures. At least seven detainees arising from events on 25 August were hospitalised with head injuries. *(See EXHIBIT C26)*

**94.** One detainee suffered bleeding on the brain that was not present before detention, while the circumstances of his arrest had been captured on video. Medical personnel

separately described severe physical injuries, including a fractured wrist in which radiographic imaging showed that the limb was effectively connected only by skin. *(See EXHIBIT C26)*

**95.** The allegations concerning San Uk Ling were not limited to physical violence.

**96.** Detainees reported forced strip searches, including searches conducted in darkened rooms, and multiple accounts of sexual assault by police officers were associated with the facility. San Uk Ling became widely associated among women participating in the protest movement with allegations of police sexual abuse. *(See EXHIBIT C23)*

**97.** No effective investigation resulting in accountability for the alleged sexual violence at San Uk Ling has been identified in the materials submitted with this report.

**98.** The combination of incommunicado detention, denial of timely access to legal representation, serious unexplained injuries sustained while detainees were under State control, and multiple reports of sexual abuse is directly relevant to the allegations of torture and other inhumane acts under Articles 7(1)(f) and 7(1)(k), and sexual violence under Article 7(1)(g).

**99.** It also demonstrates that allegations of serious custodial abuse arose contemporaneously with the mass-arrest campaign and were publicly known at the time. Medical professionals protested against the treatment of detainees, and the injuries and allegations were widely reported. *(See EXHIBIT C26)*

## D. Structural failure of the police complaints system

**100.** The principal statutory body responsible for monitoring complaints against police is the Independent Police Complaints Council ("IPCC").

**101.** The IPCC does not itself conduct the initial investigation of complaints. Complaints are investigated by the Complaints Against Police Office within the Hong Kong Police Force and subsequently reviewed by the IPCC. The IPCC also lacks independent powers equivalent to those of a commission of inquiry to compel the production of evidence and testimony. *(See EXHIBITS C29 & C30)*

**102.** In September 2019, in response to the scale of public concern regarding police conduct, the Government invited a five-member International Expert Panel to advise the IPCC in connection with its review of the protests.

**103.** The panel was chaired by Sir Denis O'Connor, formerly Her Majesty's Chief Inspector of Constabulary in the United Kingdom, and included experienced police-oversight specialists from other common-law jurisdictions. *(See EXHIBIT C30)*

**104.** On 8 November 2019, the panel issued a Position Statement concluding that there was a significant shortfall in the IPCC's powers, capacity and independent investigative capability relative to the scale of the events it was being asked to examine. *(See EXHIBIT C28)*

**105.** The panel identified structural limitations preventing the IPCC from assembling a coherent and representative evidentiary record, independently accessing and validating documents, and obtaining evidence from the police and other bodies. *(See EXHIBIT C28)*

**106.** Professor Clifford Stott, a member of the panel, publicly stated that the existing mechanism lacked the powers necessary for an adequate investigation and called for an independent body equipped with those powers. *(See EXHIBITS C28 & C29)*

**107.** When the recommended enhancement of the IPCC's investigative capacity did not occur, the entire International Expert Panel withdrew.

**108.** On 11 December 2019, it announced that the deficiencies in the IPCC's powers, capacity and independence prevented it from satisfying the standards reasonably expected of a police watchdog dealing with events on this scale. *(See EXHIBIT C30)*

**109.** The Hong Kong Government nevertheless rejected demands for an independent commission of inquiry with powers to compel evidence and maintained that the IPCC process was sufficient. *(See EXHIBIT C30)*

**110.** The practical weakness of the complaints mechanism is illustrated by the handling of allegations of sexual abuse. On 26 October 2019, shortly after relevant information had been transmitted to the police complaints system, a police spokesperson stated that no complaint of sexual assault at San Uk Ling had been received and declined to disclose whether complaints concerning sexual abuse at Tsuen Wan Police Station or other police facilities had been received. *(See EXHIBIT C27)*

**111.** The Equal Opportunities Commission separately reported receiving more than 300 protest-related inquiries between mid-June and October 2019, most concerning alleged misconduct during arrest or stop-and-search procedures. None became a formal complaint because the persons contacting the Commission were not themselves identified victims. *(See EXHIBIT C32)*

**112.** The evidence therefore identifies a structural accountability problem rather than merely an absence of convictions in particular cases. The statutory oversight mechanism lacked independent investigative powers appropriate to the scale of the allegations; its own international advisers withdrew after concluding that those deficiencies were fundamental; the Government rejected an independent commission of inquiry; and the resulting IPCC process established no individual accountability for police conduct during the protests. *(See EXHIBITS C28–C31)*

## E. Expansion of criminal law against political expression

**113.** Following the suppression of the large-scale street protests, the legal response shifted increasingly from street-level enforcement to prosecution, detention and institutional national-security measures.

**114.** The HKNSL entered into force on 30 June 2020. Its provisions were thereafter used against conduct including political advocacy, criticism of the Chinese and Hong Kong Governments, advocacy of Hong Kong independence, engagement with foreign political actors, and the organisation and participation in opposition political activity. *(See EXHIBITS A7 & E2–E3)*

**115.** Hong Kong authorities also revived the colonial-era sedition provisions of the Crimes Ordinance. The provisions dated from British colonial rule and had not been used for decades before their revival in the national-security context. *(See EXHIBIT A6)*

**116.** The reach of national-security mechanisms has extended to trivial acts of everyday expression: in June 2024, three persons were arrested for failing to stand while the Chinese national anthem was being played in a World Cup qualifying match. *(See EXHIBIT E4)*

**117.** Comparable sedition offences have been abolished or substantially restricted in a number of common-law jurisdictions. The United Kingdom abolished the offences of sedition and seditious libel in 2009, while Australia repealed its federal sedition offences in 2010. India's Supreme Court suspended the operation of its colonial sedition provision in 2022 pending reconsideration of the law. *(See EXHIBITS B2(a)–B2(c))*

**118.** In March 2024, the Hong Kong legislature enacted the Safeguarding National Security Ordinance pursuant to Article 23 of the Basic Law. The legislation substantially expanded the domestic national-security framework, including the law of sedition and the investigative and detention powers available in national-security cases. *(See EXHIBIT D1)*

**119.** By this stage, more than 10,000 persons had been arrested in connection with the 2019 protests and related political activity, including children. *(See EXHIBITS C4 and C5)* Children arrested in connection with political activity were also subjected to exceptional custodial measures, including the use of Care and Protection Orders described in Part 2. *(See EXHIBIT C35)*

**120.** The combined effect was a transition from mass street-level arrests in 2019 to a permanent statutory and institutional framework capable of sustaining arrests, prosecutions, prolonged detention and restrictions against political opponents after the mass demonstrations themselves had largely ended.

## F. The Yuen Long attack and State acquiescence

**121.** The attack at Yuen Long on 21 July 2019 is particularly relevant to the relationship between political violence, official conduct and the treatment of perceived opponents during the protest period.

**122.** On the evening of 21 July 2019, organised groups of armed men attacked civilians at and around Yuen Long MTR station. The persons assaulted included protesters, journalists, local residents and passengers with no apparent involvement in the demonstrations. *(See EXHIBIT C6)*

**123.** Public statements by a Chinese official preceding the attack called for action against protesters in Yuen Long. *(See EXHIBIT C7)*

**124.** Police also received repeated emergency calls and advance warnings concerning the developing violence but did not intervene for an extended period, allowing the attacks to continue. *(See EXHIBITS C8 & C9)*

**125.** The response after the attack reinforced the significance of the failure to intervene.

**126.** Police publicly characterised the events as a clash despite extensive video evidence showing groups of armed men attacking civilians. Subsequent enforcement was selective: persons who had been attacked or who had confronted the assailants were themselves arrested or imprisoned, while accountability for many of those involved in the original violence was substantially delayed. *(See EXHIBITS C10 & C11)*

**127.** Calls for an independent commission of inquiry into the attack and police response were rejected.

**128.** The evidence concerning Yuen Long must therefore be considered cumulatively: official statements preceding the violence; advance warnings received by police; prolonged non-intervention during the attacks; subsequent official characterisation of the events; selective enforcement against persons associated with the protest movement; and the failure to establish an independent mechanism capable of examining the police command decisions surrounding the incident.

**129.** Taken cumulatively, the evidence supports an inference of State acquiescence rather than an isolated or accidental failure of police response. Public statements preceding the violence called for action against protesters in Yuen Long; police received advance warnings and repeated emergency calls; intervention was substantially delayed while organised violence continued; police subsequently reframed the attacks as a clash; enforcement was directed in part against persons who had been attacked or had confronted the assailants; and demands for an independent investigation into the police response were rejected. *(See EXHIBITS C7–C11)*

**130.** The significance of Yuen Long therefore lies not merely in police non-intervention on a single evening, but in the cumulative relationship between prior official encouragement, advance notice, prolonged non-intervention, subsequent official characterisation, selective enforcement and the absence of an independent inquiry. These circumstances form part of the broader evidence that violence against persons

identified with the protest movement was tolerated and subsequently treated differently from conduct attributed to the political opposition.

## G. Suppression of attempts to pursue accountability

**131.** No police officer has been prosecuted for the major allegations of unlawful force arising from the 2019 protest crackdown identified in this report.

**132.** The unprosecuted conduct included the shooting of a secondary-school student in the chest with a live round on 1 October 2019 – an incident that drew widespread public criticism of the police as "trigger-happy" – in addition to the close-range shooting addressed below. *(See EXHIBIT C3)*

**133.** Former legislator Hui Chi-fung (Ted Hui) attempted to pursue private prosecutions concerning two incidents.

**134.** The first concerned the shooting of an unarmed protester at close range by an on-duty police officer on 11 November 2019. A magistrate found sufficient grounds to issue summonses in respect of offences including shooting with intent, discharging ammunition with reckless disregard for the safety of others, and dealing with arms in a manner likely to injure or endanger another person. *(See EXHIBITS C20 & C22)*

**135.** The second concerned an incident on 6 October 2019 in which a taxi driver was alleged deliberately to have driven into a crowd of protesters. A magistrate likewise found sufficient grounds for proceedings on a charge of dangerous driving. *(See EXHIBITS C21 & C22)*

**136.** Both private prosecutions were subsequently terminated through intervention by the Department of Justice. A later judicial challenge to those interventions was dismissed.

**137.** Ted Hui subsequently left Hong Kong and himself became the subject of a national-security arrest warrant and public bounty. *(See EXHIBIT F1)*

**138.** The sequence is significant to the issue of domestic accountability. Serious allegations involving violence against protesters did not result in public prosecutions initiated by the authorities; private proceedings that a magistrate had found sufficient grounds to commence were terminated by the Government; and the political figure

who attempted to pursue those proceedings was subsequently subjected to the overseas national-security measures described in Part 10.

**139.** These matters reinforce the evidence that mechanisms nominally available for accountability did not operate independently of the broader political and national-security environment.

**Part 4. Institutional Architecture of National-Security Enforcement**

**140.** The post-2020 national-security system created a permanent institutional architecture through which the measures described in this report have been implemented.

**141.** The National Security Department of the Hong Kong Police Force was established on 1 July 2020 pursuant to Articles 16 and 17 of the HKNSL. It became the specialised police body responsible for investigating offences classified as endangering national security. *(See EXHIBIT A7)*

**142.** The Office for Safeguarding National Security of the Central People's Government in the Hong Kong Special Administrative Region ("OSNS") was established on 8 July 2020. The Office operates directly under the Central People's Government. Under the HKNSL it is charged with overseeing, guiding, coordinating with and providing support to the HKSAR in safeguarding national security, and it may exercise jurisdiction over specified national-security cases in the circumstances prescribed by the law. (*See Articles 48 & 49, EXHIBIT A7*)

**143.** The HKNSL also established the Committee for Safeguarding National Security of the HKSAR, chaired by the Chief Executive. The Committee formulates national-security policy and coordinates the development and operation of the legal and enforcement mechanisms established for that purpose. Its decisions made in the performance of its statutory duties are not amenable to judicial review. *(See EXHIBIT A7)*

**144.** This structure places national-security policing, policy and enforcement within a specialised institutional framework operating under direct executive leadership and, in the case of the OSNS, direct involvement of the Central People's Government.

**145.** The structure extends into the judiciary.

**146.** Under Article 44 of the HKNSL, cases concerning national-security offences are handled by judges designated by the Chief Executive from the courts at each level. The designation is for a specified term, and a person may not be designated if he or she has made statements or behaved in a manner regarded as endangering national security. *(See EXHIBIT A7)*

**147.** The significance of this arrangement is heightened by the political context preceding its creation. During and before the 2019 protests, members of the judiciary

had publicly expressed criticism of aspects of Hong Kong's constitutional and political system. *(See EXHIBIT D2)* The post-2020 framework replaced the ordinary allocation of national-security cases with a statutory system under which eligibility to adjudicate such cases depends upon designation by the Chief Executive.

**148.** The scale of State resources committed to this structure is substantial.

**149.** Between 30 June 2020 and 30 July 2025, the Hong Kong authorities allocated approximately HK$13 billion – approximately US$1.67 billion – for safeguarding national security. *(See EXHIBIT D3)*

**150.** The Government has maintained that details of such expenditure need not be publicly disclosed because of the special confidentiality protections governing national-security expenditure. *(See Articles 14 and 19, EXHIBIT A7)*

**151.** The importance of this institutional structure to the present report does not depend upon any single arrest or prosecution. It demonstrates that the conduct described in Parts 6, 8 and 10 was implemented through a permanent and extensively resourced State apparatus: specialised police units, executive national-security bodies, dedicated statutory powers, specially designated judges, prosecutorial mechanisms and a legal framework designed specifically for the identification, investigation, prosecution and continuing pursuit of persons regarded as threats to national security.

**152.** This institutional architecture is central to the assessment of systematicity and State policy under Article 7(2)(a).

**Part 5. Institutional Stigmatisation of Political Dissidents**

**153.** The legal and institutional measures described above were accompanied by repeated public stigmatisation of the same political population by police officers, State institutions, senior officials and State media.

**154.** During the 2019 protests, the language of vermin was adopted by the representative body of the Hong Kong Police Force's own officers. In July 2019 the chairman of the Junior Police Officers' Association, Lam Chi-wai, described those who had vandalised the graves of the parents of a pro-Beijing legislator as "low lives", "cockroaches" and "not human". *(See EXHIBIT D4)*

**155.** The same description was amplified by State media. On 17 August 2019, Xinhua published a political cartoon portraying pro-democracy protesters as cockroaches. *(See EXHIBIT D5)*

**156.** The terminology depicted political opponents not as citizens exercising political rights but as vermin to be eliminated or excluded from the community.

**157.** The pattern continued after the enactment of the HKNSL.

**158.** On 31 July 2021, the Liaison Office of the Central People's Government in the HKSAR republished a Xinhua commentary that described the Hong Kong Professional Teachers' Union as a "poisonous tumour" and characterised pro-democracy organisations as "scattering like monkeys when the tree falls". *(See EXHIBIT D6)*

**159.** The Teachers' Union subsequently disbanded after sustained public attacks and political pressure from the authorities. *(See EXHIBIT D7)*

**160.** The same political framing was incorporated into the legislative process surrounding the Safeguarding National Security Ordinance. During consideration of the Article 23 legislation, Legislative Council committee vice-chairman Chan Hak-kan stated that persons endangering national security were "worse than murderers or arsonists". *(See EXHIBIT D8)*

**161.** These statements are relevant not because insulting political rhetoric independently constitutes a crime under the Rome Statute, but because they identify the attitude of State actors towards the population subjected to the measures described in this report.

**162.** The repeated representation of political opponents as vermin, disease, traitors or persons more dangerous than ordinary violent criminals is probative of discriminatory political animus and of the purpose underlying the measures imposed upon them.

**163.** The language corresponds closely with the actual categories of persons targeted by the national-security system: protesters, opposition politicians, journalists, trade unionists, civil-society organisers and overseas activists identified through political opinion and activity.

**164.** It therefore provides direct contextual evidence supporting the allegation that the arrests, prosecutions, institutional restrictions and overseas measures described elsewhere in this report were directed against an identifiable political group, rather than constituting a politically neutral application of ordinary criminal law.

**165.** The same rhetoric also continued into the extraterritorial programme described in Part 10. Senior officials publicly branded an overseas activist a "traitor", stated that wanted persons should be treated like "rats crossing the street", warned that they would bring shame upon their families, and promised that they would be pursued for life. *(See EXHIBITS F5, F8, F11 & F14–F16)*

**166.** The continuity between the language used against protesters inside Hong Kong and that subsequently directed against dissidents overseas supports the conclusion that both populations were treated as components of the same political group and subjected to a continuing policy of punishment, exclusion, deterrence and coercion.

## Part 6. Statutory and Institutional Deprivation of Due Process in National-Security Proceedings

**167.** The national-security framework introduced a series of departures from procedural protections ordinarily applicable in Hong Kong criminal proceedings. These provisions have operated together with exceptionally high conviction rates and prolonged pre-trial detention in cases directed predominantly against political expression and activity.

**168.** Their significance under Article 7 lies in the manner in which they facilitate prolonged deprivation of liberty and severe deprivation of fundamental rights against the political population identified in Part 2.

### A. Conviction rates and national-security adjudication

**169.** In June 2025, Secretary for Justice Paul Lam publicly stated that the conviction rate in national-security cases exceeded 95 per cent. *(See EXHIBIT C12)*

**170.** By comparison, Department of Justice statistics recorded conviction rates in the Magistrates' Courts of approximately 60.7 per cent in 2023 and 60.8 per cent in 2024, while conviction rates in the Court of First Instance were approximately 55.8 per cent and 58.7 per cent during those years. *(See EXHIBIT C13)*

**171.** The conviction rate cannot by itself establish that proceedings are unlawful. Its significance arises when considered together with the specialised procedural framework applicable to national-security defendants, the political character of the conduct prosecuted, the restrictive bail regime, the use of designated judges, the removal of juries in national-security trials and the other restrictions described below.

**172.** The result is a criminal-justice regime in which persons prosecuted for national-security offences face materially different procedural conditions from defendants in ordinary criminal cases.

**B. Removal of trial by jury**

**173.** Article 86 of the Basic Law provides that "[t]he principle of trial by jury previously practised in Hong Kong shall be maintained". *(See EXHIBIT A3)*

**174.** Article 46 of the HKNSL nevertheless authorises the Secretary for Justice to direct that a prosecution in the Court of First Instance be tried without a jury in specified national-security circumstances. The resulting trial is conducted by a panel of three designated judges. *(See EXHIBIT A7)*

**175.** This power has been used in major national-security prosecutions.

**176.** The removal of a jury is particularly significant when considered together with Article 44 of the HKNSL, under which the judges eligible to hear national-security cases are themselves selected through a designation system controlled by the Chief Executive.

**177.** The national-security framework therefore alters both components of the ordinary fact-finding structure traditionally associated with serious criminal trials in the Court of First Instance: the jury may be removed by executive certificate, and the resulting judicial panel is drawn from judges specifically designated for national-security cases by the Chief Executive.

**C. Executive certificates binding upon the courts**

**178.** Article 47 of the HKNSL requires Hong Kong courts, where a question arises in adjudicating a case as to whether an act involves national security or whether relevant evidence involves State secrets, to obtain a certificate from the Chief Executive.

**179.** The Chief Executive's certificate is binding upon the court. *(See EXHIBIT A7)*

**180.** The effect is to reserve specified questions central to national-security proceedings to an executive determination that the court must accept.

**181.** The provision has also acquired broader practical significance following the interpretation of Articles 14 and 47 of the HKNSL by the Standing Committee of the National People's Congress, including in controversies concerning the participation of overseas lawyers in national-security proceedings.

**182.** This mechanism materially distinguishes national-security adjudication from ordinary criminal proceedings by placing questions capable of affecting the scope and conduct of a criminal case under binding executive certification.

## D. Extended detention without charge

**183.** The Safeguarding National Security Ordinance further expanded police powers to detain national-security suspects before charge.

**184.** Under the ordinary statutory framework, a person held in police custody must be brought before a magistrate as soon as practicable. (*See EXHIBIT A8*)

**185.** Under sections 76 to 78 of the Safeguarding National Security Ordinance, a person arrested on suspicion of an offence endangering national security can be detained by the police without charge for a further 14 days after the initial 48 hours. *(See EXHIBIT A9)*

**186.** A national-security suspect may therefore be held in police custody without charge for a period far exceeding that ordinarily applicable to an arrested person in Hong Kong.

**187.** This power is directly relevant to Article 7(1)(e), particularly when considered together with the subsequent restrictive bail regime capable of extending deprivation of liberty for months or years after charge.

## E. Reverse presumption against bail

**188.** Ordinary Hong Kong criminal procedure begins from a general entitlement to bail subject to statutory grounds justifying continued detention, including risks of absconding, further offending, witness interference or obstruction of justice. *(See EXHIBIT A10)*

**189.** Article 42(2) of the HKNSL reverses the position in national-security proceedings.

**190.** It provides that:

> "No bail shall be granted to a criminal suspect or defendant unless the judge has sufficient grounds for believing that the criminal suspect or defendant will not continue to commit acts endangering national security."
> *(See EXHIBIT A7)*

**191.** The practical effect has been extensive pre-trial detention.

**192.** As described in Part 2, approximately 89 per cent of national-security defendants in the relevant study were denied bail, with an average pre-trial detention period of approximately 11 months. Some prominent defendants remained in custody for substantially longer periods before trial. *(See EXHIBIT C34)*

**193.** The United Nations Human Rights Committee has emphasised that national security cannot serve as a general justification for detention without individualised assessment and that pre-trial detention should not constitute the general rule. *(See EXHIBIT B3)*

**194.** The reverse bail framework is therefore a central component of the alleged severe deprivation of liberty under Article 7(1)(e).

## F. Compulsory production of information and access to electronic material

**195.** The right against compelled self-incrimination is protected through the ICCPR as applied to Hong Kong and through Hong Kong's domestic human-rights framework. *(See EXHIBIT A5)*

**196.** The Implementation Rules for Article 43 of the HKNSL nevertheless confer extensive compulsory information-gathering powers in national-security investigations.

**197.** Those rules permit authorities, in prescribed circumstances, to require the production of information and materials relevant to national-security investigations and create criminal consequences for failure to comply with specified requirements. The powers also extend to access to information contained on electronic devices. *(See EXHIBIT A11)*

**198.** These measures substantially strengthen the investigatory powers available against national-security suspects and persons connected with them and operate alongside the extended detention powers described above.

**199.** Their significance is particularly pronounced in prosecutions concerning political associations, communications, publications, online activity and relationships with overseas organisations, where personal electronic material and private communications may themselves form a central part of the prosecution case.

## G. Restrictions upon access to legal representation

**200.** The Safeguarding National Security Ordinance also permits restrictions upon a detained person's access to a particular lawyer.

**201.** Where the statutory conditions are met, police may apply to a magistrate for a warrant restricting a person from consulting a specified legal representative or lawyers from a specified firm during the relevant period of police detention. *(See EXHIBIT A9, Section 79(3))*

**202.** The measure therefore gives national-security investigators a statutory mechanism to interfere with a suspect's access to his or her chosen lawyer at the earliest stage of detention.

**203.** The national-security system has separately restricted the use of overseas counsel in national-security cases, as illustrated by the litigation concerning Jimmy Lai described in Part 8.

**204.** Taken together, these provisions demonstrate that restrictions upon legal representation are not confined to isolated courtroom decisions but form part of the statutory structure governing national-security investigation and prosecution.

## H. Relevance to imprisonment and persecution under Article 7

**205.** The procedural provisions described above must be assessed together rather than in isolation.

**206.** National-security defendants may be subjected to extended detention without charge; a statutory presumption against bail; prolonged pre-trial imprisonment; compulsory investigative powers; restrictions upon access to chosen lawyers; removal of trial by jury; adjudication by specially designated judges; and binding executive certification of specified national-security questions.

**207.** At the same time, the national-security system has overwhelmingly been applied against persons identified through political expression, organisation, journalism, protest activity and association with the pro-democracy movement, as demonstrated by the cases and statistical evidence set out elsewhere in this report.

**208.** These procedural restrictions therefore bear directly upon both principal underlying crimes identified in Part 2.

**209.** For Article 7(1)(e), they are relevant to whether the resulting deprivation of liberty occurred in violation of fundamental rules of international law.

**210.** For Article 7(1)(h), they form part of the severe deprivation of fundamental rights imposed upon persons selected by reason of actual or perceived political opinion.

**211.** Their formal enactment in legislation, repeated application in national-security cases and operation across police, prosecutorial, executive and judicial institutions further support the systematic character of the attack and the existence of a State policy described in Part 2.

## Part 7. Concerns Expressed by Former Judges Regarding the National-Security Legal Order

**212.** The transformation of Hong Kong's criminal-justice system following the enactment of the HKNSL has generated sustained public concern among senior judges who previously served on the Hong Kong Court of Final Appeal.

**213.** Lord Sumption, a former Non-Permanent Judge of the Court of Final Appeal, publicly criticised the operation of Hong Kong's legal system in national-security cases and described judges as operating within a political environment in which the authorities and pro-Beijing political forces exert intense pressure over cases involving national security. *(See EXHIBITS D9 & D10)*

**214.** The Hong Kong Government publicly rejected and condemned Lord Sumption's criticisms. *(See EXHIBIT D11)*

**215.** In June 2025, former Court of Final Appeal judge Baroness Brenda Marjorie Hale publicly discussed her earlier decision not to seek renewal of her term in 2021 from the Court and stated that "the National Security Law has taken over the Basic Law". She also expressed particular concern regarding persons prosecuted under the HKNSL, including Jimmy Lai. *(See EXHIBIT D12)*

**216.** The Hong Kong Government likewise rejected her comments. *(See EXHIBIT D13)*

**217.** The concerns expressed by these former judges occurred against the background of a sustained departure of overseas Non-Permanent Judges from the Court of Final Appeal following the introduction of the HKNSL.

**218.** Those who ceased serving after the promulgation of the HKNSL include: *(See EXHIBIT D14)*

a. The Right Honourable Lord SUMPTION (2019 - 2024)
b. The Right Honourable the Baroness HALE of Richmond (2018 - 2021)
c. The Right Honourable the Lord CLARKE of Stone-cum-Ebony (2011 - 2020)
d. The Honourable Mr Justice James Jacob SPIGELMAN, AC (2013 - 2020)
e. The Right Honourable the Lord REED of Allermuir (2017 - 2022)
f. The Right Honourable Lord HODGE (2021 - 2022)
g. The Honourable Mr Justice Anthony Murray GLEESON, GBS (2009 - 2024)
h. The Right Honourable The Lord COLLINS of Mapesbury (2011 - 2024)

i. The Right Honourable Madam Justice Beverley McLACHLIN (2018 - 2024)
j. The Right Honourable the Lord PHILLIPS of Worth Matravers, GBS (2012 - 2024)
k. The Honourable Mr Justice Robert FRENCH (2017 - 2025)

**219.** These departures and public criticisms are significant because they arose contemporaneously with the institutional changes described in Parts 4 and 6: designation of national-security judges by the Chief Executive, removal of juries in specified national-security cases, binding executive certificates on questions of national security, restrictions upon legal representation, the reverse presumption against bail, and the increasing use of criminal proceedings against political expression and organisation.

**220.** The evidence therefore provides independent institutional corroboration of a substantial transformation in the environment in which politically sensitive criminal proceedings are conducted.

**221.** It is particularly relevant to the systematic character of the measures described in this report. The concerns did not arise from a single disputed judgment or isolated criminal prosecution. They emerged in response to a legal and institutional framework affecting the courts as a whole in national-security cases.

**222.** The significance of this material is further illustrated by the representative prosecutions described below.

## Part 8. Representative Cases Demonstrating Imprisonment and Political Persecution

**223.** The cases below illustrate the practical operation of the legal and institutional framework described in Parts 4 and 6.

**224.** They encompass opposition politicians, journalists, editors, civil-society organisers, trade unionists, students, religious figures and veteran political activists. Although the particular offences and factual circumstances differ, the cases share a central characteristic: criminal liability, prolonged detention or imprisonment arose from political organisation, expression, publication, commemoration, protest or other conduct closely connected with the exercise of fundamental civil and political rights.

**225.** Taken together, these cases provide concrete examples of the imprisonment and politically discriminatory deprivation of fundamental rights alleged under Articles 7(1)(e) and 7(1)(h).

### A. Jimmy Lai and Apple Daily

**226.** Jimmy Lai, a British citizen and founder of the newspaper Apple Daily, has been detained since December 2020.

**227.** His case combines prolonged deprivation of liberty, restrictions upon legal representation, extended isolation, deterioration in physical condition, prosecution arising from political and journalistic activity, and explicit endorsement of severe punishment by the highest levels of the HKSAR Government.

**228.** During the proceedings, Mr Lai was prevented from being represented by his chosen overseas counsel on national-security grounds. *(See EXHIBIT E5)*

**229.** The dispute ultimately involved the Committee for Safeguarding National Security, whose decisions made in the performance of its statutory functions are not subject to judicial review under the HKNSL. The restriction directly affected Mr Lai's ability to select the legal representative whom he wished to conduct his defence. *(See Article 12 - 15, EXHIBIT A7)*

**230.** The conduct of the trial also demonstrates the restrictive environment described in Part 6. The court limited Mr Lai's ability to provide contextual explanations concerning his intention and state of mind and repeatedly confined his evidence to narrowly framed answers. *(See EXHIBIT E6)*

**231.** These restrictions are particularly important in a national-security prosecution in which political intention, communications, journalistic activity and relationships with foreign persons formed central components of the allegations.

**232.** During his detention, Mr Lai was held for prolonged periods in isolation.

**233.** His family reported dramatic weight loss, deterioration of his teeth and abnormal changes to his nails. *(See EXHIBIT E7)* Concerns regarding his prolonged isolation and declining health were raised during the proceedings. *(See EXHIBIT E8)*

**234.** Contemporaneous photographs and courtroom observations documented a marked deterioration in his physical appearance during his years in custody. *(See EXHIBITS E8 & E9(a)–(b))*

**235.** On 9 February 2026, Mr Lai was sentenced to 20 years' imprisonment. *(See EXHIBITS E10 & E11)*

**236.** Immediately following sentencing, Chief Executive John Lee publicly endorsed the result and stated that the sentence was "deeply gratifying to the public". A Government spokesperson described Mr Lai as the "mastermind" of the offences and emphasised the appropriateness of severe punishment. *(See EXHIBIT E11)*

**237.** The Government has maintained that Mr Lai's isolation was undertaken at his own request. *(See EXHIBIT E11)* The duration and physical consequences of those conditions nevertheless remain directly relevant to the assessment of his treatment in custody.

**238.** The principal significance of the Lai case to this report lies in Articles 7(1)(e) and 7(1)(h).

**239.** A major media proprietor and political critic was subjected to more than five years of detention before receiving a 20-year sentence in national-security proceedings, while restrictions were imposed upon his chosen legal representation and the highest executive authorities publicly endorsed the severity of his punishment.

**240.** His case therefore exemplifies the intersection between prolonged imprisonment, restrictions upon fundamental procedural rights and political persecution alleged in Part 2.

## B. The Hong Kong 47

**241.** The prosecution known as the "Hong Kong 47" concerned 47 pro-democracy politicians and activists who organised or participated in an unofficial primary election in July 2020.

**242.** The objective of the primary was to coordinate pro-democracy candidates in advance of elections to the Legislative Council and increase their prospects of obtaining a legislative majority.

**243.** The prosecution alleged that, if the candidates obtained a majority, they intended to use powers available to legislators – including the power to vote against the Government's budget – in order ultimately to compel the resignation of the Chief Executive.

**244.** The authorities characterised that political strategy as a conspiracy to commit subversion under the HKNSL. *(See EXHIBIT E12; see also Articles 73(2) and 52, EXHIBIT A3)*

**245.** Of the defendants who contested the charge, 14 of 16 were convicted by a three-judge panel on 30 May 2024. In total, 45 defendants were convicted, with sentences subsequently imposed of up to ten years' imprisonment. *(See EXHIBITS E3 & E12)*

**246.** Many defendants had already spent lengthy periods in pre-trial detention under the restrictive national-security bail regime before conviction.

**247.** The Hong Kong 47 case is central to the allegation of political persecution because the underlying conduct consisted of organising and participating in an electoral strategy undertaken by opposition politicians and activists.

**248.** The prosecution transformed the use of political and legislative processes – a primary election, electoral coordination and a proposed exercise of legislative voting power – into the factual basis of a national-security conspiracy carrying lengthy terms of imprisonment.

**249.** It therefore directly illustrates the use of imprisonment and criminal prosecution against persons selected by reason of organised political opposition.

## C. Chow Hang-tung and the Hong Kong Alliance

**250.** The Hong Kong Alliance in Support of Patriotic Democratic Movements of China was established in 1989 and for decades organised the annual 4 June candlelight vigil in Victoria Park commemorating the victims of the Tiananmen Square crackdown. Thousands of persons participated in those commemorations over many years. *(See EXHIBIT E13)*

**251.** Former Alliance leaders Lee Cheuk-yan, Albert Ho and Chow Hang-tung were subsequently prosecuted for "inciting subversion of state power".

**252.** The prosecution relied, among other matters, upon the Alliance's longstanding political objective of "ending one-party rule" in China, contending that advocacy of that objective constituted incitement to subvert State power. *(See EXHIBIT E14)*

**253.** The defendants remained in custody for prolonged periods following denial of bail, exceeding 1,500 days in the cases described in the accompanying evidence.

**254.** The authorities also prosecuted Chow Hang-tung and other Alliance members, including Tang Ngok-kwan and Tsui Hon-kwong, for failing to comply with a police demand for information issued under the national-security framework.

**255.** In those proceedings, the court held that the prosecution was not required to establish that the Alliance was in fact a "foreign agent" as a prerequisite to the relevant information demand. *(See EXHIBIT E15)*

**256.** In sentencing, the court emphasised that punishment should reflect the law's determination to safeguard national security, send a clear message to the public and operate as a sufficiently punitive deterrent. *(See EXHIBIT E16)*

**257.** On 21 August 2026, a panel of three designated national-security judges convicted Lee Cheuk-yan and Chow Hang-tung of incitement to subvert State power; Albert Ho had pleaded guilty. The court accepted that the case involved neither violence nor the threat of violence, and that the defendants had proposed no specific means of implementation or timetable, but nonetheless held the offence to be of a serious nature. *(See EXHIBIT E28)*

**258.** On 11 September 2026, the court adopted a starting point of seven years and six months' imprisonment and sentenced Chow Hang-tung to seven years and three months, Lee Cheuk-yan to seven years and Albert Ho to five years and two months. The Alliance itself was fined HK$1.5 million. *(See EXHIBIT E27)*

**259.** The conduct relied upon was the continued public activity of an organisation whose principal public function, for more than three decades, had been the commemoration of those killed in Beijing on 4 June 1989: the dissemination of its programme, including its call to end one-party rule, through its organised activities, its Tiananmen commemorations and its social-media presence. The court treated the defendants' refusal to abandon that position after the HKNSL came into force as part of the gravity of the offence. *(See EXHIBIT E28)*

**260.** The significance of the case lies in the conjunction of these facts. The organised remembrance of the dead of 4 June 1989, and the political demand long associated with it, formed part of the factual basis of a national-security conviction carrying up to seven years and three months' imprisonment, imposed upon defendants who had already spent more than 1,500 days in pre-trial detention. Peaceful commemoration of a historical atrocity, openly practised in Hong Kong for three decades, has thereby been brought within the reach of the most serious offences under the national-security framework.

**261.** These proceedings demonstrate the use of national-security criminal law against a civil-society organisation defined principally by public commemoration and political advocacy, accompanied by prolonged pre-trial detention and compulsory State demands for information concerning its activities and connections.

**262.** They are directly relevant to the alleged dismantling of organised political and civil-society opposition through imprisonment and severe restrictions upon freedom of expression and association.

## D. Stand News and the prosecution of journalism

**263.** The prosecution of former Stand News editors Chung Pui-kuen and Patrick Lam illustrates the application of sedition law to journalism and publication.

**264.** Both were convicted in relation to material published by Stand News, including interviews with and commentary by pro-democracy political figures.

**265.** The court held that the prosecution was not required to prove an intention to incite violence or even an intention to cause disaffection towards the Government. *(See EXHIBIT E17)*

**266.** The defendants were imprisoned and Stand News ceased operating.

**267.** The case demonstrates that the post-2019 prosecution campaign extended beyond organisers of street protests or opposition politicians to journalists and editors publishing political commentary and interviews.

**268.** It is therefore relevant to persecution through severe deprivation of freedom of expression and press freedom and to the broader dismantling of independent institutions associated with the targeted political population.

## E. The speech therapists' children's books

**269.** Five speech therapists were imprisoned in connection with three illustrated children's books employing an allegory in which sheep defended their village from wolves.

**270.** The books used that allegory to describe political events surrounding the 2019 protest movement to children.

**271.** The authorities treated the publications as seditious and relied upon their political meaning and presentation in establishing seditious intent. *(See EXHIBIT E18)*

**272.** The imprisonment of the authors demonstrates the breadth of the political-expression cases: criminal punishment extended to allegorical children's literature produced by professional speech therapists rather than conventional political organisations or protest leaders.

## F. Yuen Ching-ting

**273.** Yuen Ching-ting, a 23-year-old student, was arrested after returning to Hong Kong from Japan.

**274.** Her prosecution concerned 13 Facebook and Instagram posts made between 2018 and 2023, most of them made while she was studying in Japan. Her accounts had only 473 Facebook friends and 657 Instagram followers.

**275.** The authorities acknowledged that the posts consisted of slogans, did not employ radical language and did not generate heated public discussion. *(See EXHIBIT E19)*

**276.** Nevertheless, she was convicted and imprisoned for sedition.

**277.** Her case is relevant both to the breadth of political-expression prosecutions and to the willingness of the authorities to pursue individuals for low-reach online expression made while outside Hong Kong.

## G. Garry Pang Moon-yuen

**278.** Garry Pang Moon-yuen, a Christian pastor, was convicted in 2022 following conduct that included clapping in court in support of defendants being prosecuted over the prohibited 4 June candlelight vigil. *(See EXHIBIT E20)*

**279.** The prosecution illustrates the extension of punitive measures beyond principal organisers and defendants to persons publicly expressing solidarity with those prosecuted for politically sensitive activity.

## H. Removal of the "Pillar of Shame" and the prosecution of Zeng Yuxuan

**280.** The "Pillar of Shame", created by Danish artist Jens Galschiøt, commemorates those killed during the 1989 Tiananmen Square crackdown.

**281.** A version of the sculpture had stood at the University of Hong Kong since June 1997 until its removal despite the artist's offer to retrieve it. *(See EXHIBIT E21)*

**282.** Zeng Yuxuan, a student from mainland China, was subsequently arrested for planning to display a replica banner of the "Pillar of Shame" in public as a commemoration of the Tiananmen crackdown.

**283.** The intended display never took place.

**284.** Nevertheless, she was convicted and sentenced to six months' imprisonment in September 2023 and was subsequently deported to mainland China. *(See EXHIBIT E22)*

**285.** Her case demonstrates the use of imprisonment against planned peaceful political commemoration even before the intended expressive act occurred.

## I. Koo Sze-yiu

**286.** Koo Sze-yiu is a veteran pro-democracy and labour-rights activist who, at approximately 75 years of age and while suffering from terminal rectal cancer, was imprisoned for planning a protest in which he intended to carry a makeshift coffin bearing slogans critical of the Chinese Government. *(See EXHIBIT E23)*

**287.** The case again concerned planned non-violent symbolic political expression.

**288.** The severity of imprisonment imposed upon an elderly and seriously ill activist for preparing a symbolic protest further illustrates the punitive intensity with which politically oppositional expression has been treated.

## J. Joshua Wong Chi-fung

**289.** Joshua Wong Chi-fung, the former secretary-general of the pro-democracy group Demosisto, has been in custody since November 2020. He was among the defendants in the Hong Kong 47 case described in Section B above, was sentenced to four years and eight months' imprisonment, and was due for release in January 2027. *(See EXHIBITS E29 & E30)*

**290.** In 2025, while serving that sentence, he was charged with conspiracy to commit collusion with a foreign country or with external elements to endanger national security under Article 29 of the HKNSL, almost five years after the period of the alleged offence. The charge concerned the period from 1 July 2020, the day after the HKNSL came into force, to 23 November 2020, the day of his remand, and alleged a conspiracy with Nathan Law, by then in the United Kingdom, to request foreign sanctions, blockades or other hostile measures against the HKSAR or the People's Republic of China. *(See EXHIBIT E29)*

**291.** The conduct relied upon for that period consisted of social-media posts, including the reposting of an online petition and of posts by Law, and commentaries in foreign media amplifying Law's advocacy abroad. Demosisto's earlier lobbying, testimony and campaigns had all preceded the HKNSL and were treated by the court as context only. *(See EXHIBIT E29)*

**292.** Wong pleaded guilty in May 2026. On 5 November 2026, the court held the offence to be of a grave nature, adopted a starting point of 13 years and, after credit

for the plea, imposed the statutory minimum of ten years' imprisonment, of which two months and two days were to run concurrently with the remainder of his existing sentence. He is now expected to remain in prison until November 2036. *(See EXHIBIT E29)*

**293.** Immediately following the sentence, Chief Executive John Lee described Wong, Nathan Law and their accomplices as among the "primary culprits responsible for undermining Hong Kong's prosperity and stability". *(See EXHIBIT E30)*

**294.** The case illustrates two features of the enforcement campaign: the bringing of a further national-security charge against a prisoner, almost five years after the last act alleged and while he was awaiting release in January 2027, so as to extend his imprisonment by almost a decade; and the imposition of a ten-year sentence for conduct consisting, in the period charged, of social-media posts and published commentary in support of advocacy conducted abroad. It is directly relevant to imprisonment under Article 7(1)(e) and to persecution on political grounds under Article 7(1)(h).

## K. Cumulative significance of the representative cases

**295.** The cases described above span markedly different forms of activity:

a. participation in an opposition primary election;
b. legislative strategy;
c. journalism and political commentary;
d. annual commemoration of the Tiananmen Square crackdown;
e. advocacy for political reform in China;
f. children's books containing political allegory;
g. low-reach social-media posts;
h. courtroom expressions of solidarity;
i. preparation of commemorative displays; and
j. planned symbolic protest.

**296.** They also concern persons from fundamentally different sectors of civilian life: legislators, journalists, publishers, civil-society leaders, trade unionists, professionals, students, clergy and elderly activists.

**297.** This diversity is itself important.

**298.** Taken together, the cases demonstrate a criminal-enforcement campaign extending across different sectors of civilian society whose common characteristic was actual or perceived political opposition. The recurring use of imprisonment and severe restrictions against this population supports the alleged pattern of political persecution.

**299.** The cases therefore provide direct factual support for the two principal underlying crimes identified in Part 2: imprisonment or severe deprivation of liberty under Article 7(1)(e), and persecution through severe deprivation of fundamental rights on political grounds under Article 7(1)(h).

**300.** Their recurrence over a period of years, under overlapping national-security and sedition frameworks and through the same police, prosecutorial, executive and judicial structures, also supports the systematic character of the wider attack.

## Part 9. Treatment of Political Prisoners and Continuing Restrictions Beyond Imprisonment

**301.** The alleged persecution has not been confined to arrest, prosecution and sentence.

**302.** Evidence concerning conditions of detention, treatment of young prisoners, prolonged solitary confinement, physical and sexual abuse, political indoctrination, restrictions upon early release and continuing controls imposed after release demonstrates that deprivation of liberty has been accompanied by additional coercive measures.

**303.** The evidentiary record includes findings of United Nations mechanisms, official prison and prosecution data, criminally adjudicated incidents, reports based upon interviews with former political prisoners, and direct accounts from former detainees.

### A. Scale of political imprisonment

**304.** In September 2025, the Committee for Freedom in Hong Kong Foundation ("CFHK") published a report concerning the treatment of political prisoners based upon interviews with former detainees and publicly available information. *(See EXHIBIT C14)*

Its principal findings included:

a. prolonged solitary confinement;
b. physical and psychological abuse;
c. medical neglect; and
d. coercive political indoctrination.

**305.** Approximately 2,200 persons have been sent to prison on politically related charges since 2019, while approximately 300 remained imprisoned for pro-democracy political activity as of February 2026 according to the data relied upon in this report. *(See EXHIBIT C15)*

**306.** For context, the total prison population in Hong Kong fluctuated between approximately 7,867 and 10,520 persons between 31 December 2021 and 30 September 2025. *(See EXHIBIT C16)*

**307.** Of the 10,520 persons in custody as of 30 September 2025, 4,419 had not been convicted – approximately 42 per cent of the custodial population.

**308.** The political-detention figures must also be considered together with the restrictive national-security bail regime described in Parts 2 and 6, under which political defendants have frequently remained incarcerated for lengthy periods before trial.

## B. United Nations findings of arbitrary detention

**309.** The concerns regarding political imprisonment are not confined to civil-society reporting.

**310.** The United Nations Working Group on Arbitrary Detention ("WGAD") has formally found the detention of prominent Hong Kong political defendants to be arbitrary.

**311.** The Working Group determined that Chow Hang-tung was arbitrarily deprived of her liberty and called for her release and compensation. *(See EXHIBIT B4)*

**312.** It reached a corresponding conclusion concerning Jimmy Lai. *(See EXHIBIT B5)*

**313.** The Working Group called upon the Hong Kong authorities to release and compensate the persons concerned, amend the national-security legal framework and investigate the violations identified.

**314.** These findings are directly relevant to Article 7(1)(e). They constitute findings by a United Nations expert mechanism that major instances of political detention described in this report were not merely controversial prosecutions but arbitrary deprivations of liberty contrary to international standards.

**315.** They also reinforce the persecution analysis under Article 7(1)(h), since the underlying conduct was closely connected to the political expression, association and activities of the persons detained.

## C. Children and young persons under the national-security system

**316.** The national-security framework has been applied to children as well as adults.

**317.** In 2022, four persons aged 16 and 17 became the first minors convicted under the HKNSL. *(See EXHIBIT C33)*

**318.** In December 2025, a 16-year-old was sentenced to 42 months' imprisonment for conduct involving online meetings and social-media activity connected with an overseas organisation. The court declined to treat either his age or his autism as sufficient mitigation to avoid the custodial sentence imposed. *(See EXHIBIT C33)*

**319.** These prosecutions form part of a wider pattern of coercive measures affecting children and young persons described elsewhere in this report, including the use of Care and Protection Orders against uncharged minors during the 2019 protests.

**320.** The application of national-security imprisonment to children is relevant both to the breadth of the affected civilian population and to the gravity of the deprivation imposed.

## D. Allegations of organised physical and sexual abuse in custody

**321.** Former political detainees have described physical and sexual abuse within correctional institutions, including violence carried out by other prisoners with the alleged knowledge, encouragement or protection of correctional staff.

**322.** Accounts described the use of inmates known as "B-boys", who allegedly received privileges or protection in connection with violence against vulnerable prisoners. Former detainees also reported sexual abuse of young prisoners, including an account concerning the anal rape of a 15-year-old boy in custody. *(See EXHIBITS C17 & C18)*

**323.** These accounts are corroborated in an important respect by a criminally established incident at Pik Uk Correctional Institution.

**324.** At Pik Uk, a correctional officer acting together with inmates assaulted an 18-year-old remand prisoner by inserting a wooden stick into his rectum. The assault tore the victim's anus and caused permanent injury. *(See EXHIBITS C34 & C35)*

**325.** Former detainees have also described a method of physical assault known as the "chicken wing", in which prisoners were taken to locations outside CCTV coverage and struck in a manner intended to minimise visible injuries. *(See EXHIBIT C34)*

**326.** Taken together, the evidence establishes a serious pattern requiring examination under Articles 7(1)(f), 7(1)(g) and 7(1)(k).

**327.** The Pik Uk incident demonstrates that severe sexualised violence involving a State correctional officer was not merely hypothetical or the product of political allegation. The broader witness evidence describes substantially wider practices of physical and sexual abuse, concealment and the use of favoured inmates against vulnerable detainees.

**328.** The convergence of those sources provides substantial grounds for examining whether custodial abuse extended beyond isolated misconduct and formed part of the treatment imposed upon politically identified prisoners and young detainees.

## E. Solitary confinement, psychological pressure and medical neglect

**329.** Evidence from former prisoners and civil-society investigations also describes prolonged solitary confinement, psychological abuse and inadequate medical treatment. *(See EXHIBIT C14)*

**330.** The conditions imposed upon Jimmy Lai, described in Part 8, provide a prominent example of prolonged isolation combined with reported deterioration of physical health.

**331.** Other political detainees have similarly described segregation, coercive treatment and restrictions extending beyond the ordinary consequences of imprisonment.

**332.** These practices are relevant to the assessment of torture and other inhumane acts where the treatment reaches the requisite level of severity, and they also demonstrate that the punishment imposed upon politically identified prisoners has not necessarily been limited to the custodial sentence pronounced by a court.

## F. Political indoctrination and coercive rehabilitation

**333.** The treatment described by former political prisoners also includes compulsory or coercive programmes directed at political attitude and identity.

**334.** The CFHK material identifies political indoctrination as a recurrent feature of the treatment of political prisoners. *(See EXHIBIT C14)*

**335.** Comparable concerns arise from the treatment of persons arrested in connection with the 2019 protests whose cases remained unresolved for years and who were

reportedly directed into "rehabilitation" or "re-education" programmes as a condition associated with non-prosecution. *(See EXHIBIT C35)*

**336.** Such measures are particularly relevant to political persecution because their objective extends beyond preventing ordinary criminal conduct. They seek to alter, suppress or control the political outlook of persons selected through their participation in the protest and pro-democracy movements.

**337.** They therefore reinforce the conclusion that political identity and opinion themselves formed an object of State coercion.

## G. Continuing control after release: Tony Chung

**338.** The coercive system extended beyond the prison gates.

**339.** Tony Chung, a pro-democracy activist imprisoned from the age of 19 for "secession" under the HKNSL, remained subject to extensive restrictions following release.

**340.** Upon release, he was prohibited from making public statements concerning his conviction and from communicating or publishing material regarded as endorsing, supporting, promoting, glorifying, encouraging or inciting national-security offences. *(See EXHIBIT E24)*

**341.** He was also unable to freely obtain employment without approval from the authorities.

**342.** National-security police required Chung to attend recurring meetings at which he was questioned in detail concerning his activities, the persons with whom he associated and the contents of his conversations.

**343.** According to his account, the authorities also offered to pay him to act as an informant. *(See EXHIBIT E25)*

**344.** These measures demonstrate that the coercive consequences of a national-security conviction could continue after the formal term of imprisonment had ended.

**345.** The restrictions affected expression, employment, association, private communications and personal relationships and placed a former political prisoner under continuing national-security supervision.

**346.** They are directly relevant to persecution under Article 7(1)(h), since they imposed continuing deprivations of fundamental rights by reason of the individual's political history and identity.

## H. Restrictions upon early release

**347.** The Safeguarding National Security Ordinance also altered the availability of early release for persons convicted of national-security offences.

**348.** Prisoners serving sentences for offences endangering national security are required to satisfy the national-security standard prescribed by the legislation before receiving the early-release benefit otherwise available to qualifying prisoners. The provision also applies to persons sentenced before the enactment of the new legislation. *(See EXHIBIT E26)*

**349.** The consequence is that national-security prisoners are subjected to an additional statutory barrier to release based upon an assessment of future national-security risk.

**350.** This measure prolongs the potential deprivation of liberty attached specifically to national-security convictions and forms part of the differentiated penal regime applied to the political population described in this report.

## I. Restrictions upon visits by lawyers and religious ministers

**351.** Further restrictions were introduced through prison rules in 2025.

**352.** Those rules permit the Correctional Services Department, on national-security grounds, to restrict visits by specified legal representatives and religious ministers. *(See EXHIBIT C19)*

**353.** The measures reach two relationships of particular importance to persons in custody: confidential access to legal assistance and access to religious or pastoral support.

**354.** Their incorporation into the national-security prison regime demonstrates that the differentiated treatment of national-security prisoners continues after conviction and extends into the ordinary conditions and relationships of prison life.

## J. Cumulative significance

**355.** The evidence in this Part demonstrates that political imprisonment in Hong Kong cannot be assessed solely by counting convictions and formal sentences.

**356.** The broader system includes:

a. prolonged pre-trial detention;
b. arbitrary detention identified by United Nations mechanisms;
c. imprisonment of minors;
d. prolonged isolation;
e. physical and psychological abuse;
f. allegations of organised sexual violence;
g. a case of severe penetrative sexual violence involving a correctional officer;
h. political indoctrination and coercive rehabilitation;
i. additional barriers to early release;
j. restrictions upon legal and religious visits; and
k. continuing surveillance, employment restrictions and pressure to provide intelligence after release.

**357.** These measures reinforce the allegations under Articles 7(1)(e) and 7(1)(h) by demonstrating that imprisonment formed part of a broader system of coercion directed against the political population identified in Part 2.

**358.** The evidence of serious physical and sexual abuse further supports examination under Articles 7(1)(f), 7(1)(g) and 7(1)(k).

**359.** Most importantly, the measures recur across different stages of State control – arrest, pre-trial detention, imprisonment, prison administration, release decisions and post-release supervision. Their cumulative operation supports the conclusion that the deprivation of liberty imposed upon political opponents was institutional and continuing rather than confined to individual sentencing decisions.

## Part 10. Extraterritorial Conduct in the Territory of States Parties to the Rome Statute

**360.** The course of conduct described in this report has not been confined to the territory of the Hong Kong Special Administrative Region.

**361.** Since 2023, the Hong Kong authorities have pursued a coordinated programme directed against members of the exiled Hong Kong pro-democracy community, including persons known by the authorities to reside in States Parties to the Rome Statute, particularly the United Kingdom, as well as Canada, Germany and Australia.

**362.** The programme has included four interrelated forms of conduct: first, arrest warrants and public monetary bounties against named persons residing overseas; secondly, statutory "specified absconder" measures imposing financial and civil disabilities upon named persons and threatening criminal liability against those who support them; thirdly, coercive measures against family members remaining in Hong Kong; and fourthly, operational surveillance and intelligence-gathering carried out within the United Kingdom through persons associated with the Hong Kong Economic and Trade Office in London.

**363.** These four forms of conduct establish both the substantive transnational dimension of the alleged persecution and its territorial connection with States Parties.

**364.** They form part of the alleged persecution under Article 7(1)(h) because they were directed against members of the same identifiable political population for continuing political activity, advocacy and expression after leaving Hong Kong, and were designed to isolate, monitor, punish, deter or coerce them and those who associated with or financially supported them.

**365.** The territorial nexus is most concrete in the United Kingdom, where surveillance, operational tasking, information-gathering, acquisition and transmission of personal information, misuse of government systems and related operational activity were physically carried out, as described in Section D.

**366.** The arrest warrants, bounties, financial restrictions and family reprisals described in Sections A to C establish the discriminatory purpose, intended international scope and organised character of the same programme.

**A. Arrest warrants and public bounties against persons resident in States Parties**

**367.** On 3 July 2023, the National Security Department of the Hong Kong Police Force announced that arrest warrants had been issued against eight persons who had left Hong Kong and offered a reward of HK$1,000,000 in respect of each person for information leading to arrest. Three of the persons – Christopher Mung (Mung Siu-tat), Finn Lau (Lau Cho-dik) and Nathan Law (Law Kwun-chung) – were resident in the United Kingdom. *(See EXHIBIT F1)*

**368.** The scheme was subsequently expanded. On 14 December 2023, rewards of HK$1,000,000 were announced in respect of five further persons, including Simon Cheng (Cheng Man-kit), Fok Ka-chi and Choi Ming-da. *(See EXHIBIT F2)* On 24 December 2024, similar rewards were announced in respect of six additional persons, including Lau Ka-man (Carmen Lau), Chung Hon-lam (Tony Chung), Chung Kim-wah and Cheung Hei-ching (Chloe Cheung). *(See EXHIBIT F3)* On 25 July 2025, arrest warrants and rewards were announced against nineteen persons in connection with the "Hong Kong Parliament" case, including Chin Po-fun, in respect of whom a reward of HK$200,000 was offered. *(See EXHIBIT F4)*

**369.** A substantial number of the persons identified in these measures were known by the Hong Kong authorities to reside in States Parties, particularly the United Kingdom.

**370.** The programme was not confined to the formal announcement of warrants.

**371.** The Chief Executive, John Lee Ka-chiu, publicly endorsed the measures and stated that the wanted persons would be "pursued… for life", that "no matter where they flee to, however far, we will pursue these criminals for life", and that they would otherwise remain "living in fear every day, in dread of arrest". He stated that the reward scheme was open to relatives and friends of the wanted persons and that the authorities would continue to monitor their conduct. *(See EXHIBITS F5–F7)*

**372.** In the English-language portion of the same public session, Lee expressly defended the extraterritorial reach of the national-security regime, stating that Hong Kong's national-security legislation possessed "the same power of taking extraterritorial action against criminals" as the laws of other States. *(See EXHIBIT F6)* This statement directly demonstrates that the overseas dimension of the programme was understood and publicly endorsed at the highest level of the HKSAR executive.

**373.** The Secretary for Security, Chris Tang Ping-keung, stated that the authorities would identify the contacts, associates and financiers of the wanted persons "in Hong Kong or overseas", and that Hong Kong law-enforcement authorities would "devote their whole lives" to bringing them back for arrest. *(See EXHIBITS F8–F10)*

**374.** Tang publicly described Nathan Law as a "modern-day traitor of the Chinese nation", subsequently stated that wanted persons would be unable to "see the light like a rat crossing the street", warned that they would "bring shame upon [their] family", and stated that persons residing overseas would ultimately be "struck down". *(See EXHIBITS F8 & F14–F16)*

**375.** Senior officials additionally warned that persons who financially or otherwise assisted the wanted individuals could themselves incur criminal liability. *(See EXHIBITS F9, F11 & F13)*

**376.** The reward scheme expressly solicited information concerning the movements and circumstances of named persons residing overseas and invited persons "in Hong Kong or overseas" to provide that information. *(See EXHIBIT F8)* By offering substantial public rewards for information capable of locating persons residing abroad, the programme created a direct financial incentive for third parties to locate, monitor and report upon named political dissidents in the States in which they resided.

**377.** The overseas intelligence-gathering contemplated by the programme was not hypothetical. Subsequent United Kingdom criminal proceedings established organised surveillance, operational tasking, collection and transmission of personal information and reporting concerning members of the same exiled Hong Kong political community. The Crown Prosecution Service expressly connected the unlawful surveillance activity with the wider overseas bounty system. *(See EXHIBITS F28–F37)*

**378.** Material predating the programme further demonstrates that the programme was conceived with the position of political exiles protected abroad in mind. The authorities referred to wanted persons who had "sought protection from foreign countries", while the bounty mechanism sought to facilitate their continuing pursuit notwithstanding the practical limits of ordinary inter-State legal cooperation. *(See EXHIBIT F17)*

**379.** This feature is significant to the design and purpose of the programme. The overseas measures were not merely domestic arrest warrants that incidentally affected persons abroad. They established alternative means of locating, monitoring, isolating and exerting pressure upon political opponents who could not readily be secured through ordinary State-to-State legal processes.

**380.** The United Kingdom Government subsequently described further arrest warrants and bounties against persons living in the United Kingdom as "another example of transnational repression" and warned that the practice "encourages reckless behaviour on UK soil". *(See EXHIBIT F38)*

**381.** The Hong Kong Government responded by reaffirming the policy, stating that persons residing in the United Kingdom and other Western countries remained wanted because of their continuing political activities and that the authorities would "exhaust all means to pursue and combat" them "regardless of the distance". *(See EXHIBIT F41)*

**382.** Taken together, the bounty programme, the deliberate solicitation of overseas intelligence, the express assertion of extraterritorial enforcement power, the targeting of persons protected abroad, the pursuit of their contacts and financiers, and the subsequent operational surveillance conducted in the United Kingdom establish a coordinated overseas component of the alleged persecution under Article 7(1)(h).

## B. The "specified absconder" measures

**383.** The bounty programme was subsequently reinforced by statutory measures enacted under the Safeguarding National Security Ordinance.

**384.** Under sections 89(1) and 89(4), the Secretary for Security may specify a wanted person as a "specified absconder" (指明潛逃者) and impose a series of measures against that person, including prohibitions upon the provision of or dealing with funds on the person's behalf, restrictions upon property dealings, prohibitions upon joint ventures or partnerships, cancellation of an HKSAR passport, suspension of professional qualifications and removal from directorships.

**385.** Contravention of applicable measures may result in criminal liability and imprisonment.

**386.** On 12 June 2024, the Secretary for Security specified six persons – Nathan Law, Christopher Mung, Finn Lau, Simon Cheng, Fok Ka-chi and Choi Ming-da – and imposed measures against them. He stated expressly that the persons concerned were "hiding in the United Kingdom" and linked the announcement to the United Kingdom proceedings involving an employee of the Hong Kong Economic and Trade Office in London. *(See EXHIBIT F20)*

**387.** On 4 August 2025, a further sixteen persons, including Po-fun Chin, were named. The Government expressly identified persons residing in the United Kingdom, Canada, Germany and Australia, among other jurisdictions. *(See EXHIBIT F22)*

**388.** The measures were framed by Hong Kong officials as extending to financial assistance provided by persons outside Hong Kong.

**389.** The Secretary for Security stated that it was an offence to provide or handle funds for specified absconders "no matter what platform it is". When specifically asked about persons holding BN(O) passports and residing in the United Kingdom who subscribed to the Patreon or YouTube accounts of specified persons, he stated that persons providing funding or assisting with the handling of funds would be subject to criminal sanction. *(See EXHIBIT F21)*

**390.** This evidence is relevant to the intended scope of the alleged persecution. It demonstrates that the authorities did not confine the programme to conduct occurring within Hong Kong but expressly sought to deter persons residing in States Parties from maintaining financial relationships with members of the targeted political community.

**391.** The measures imposed upon the specified persons themselves – including cancellation of passports, restrictions upon professional activities and measures intended to sever access to financial support – are relevant to assessing whether the overall programme amounted to a severe deprivation of fundamental rights on political grounds.

**392.** The "specified absconder" measures reinforce the international scope and discriminatory character of the same programme. They impose financial, professional and civil disabilities upon named political opponents while expressly seeking to deter persons residing in States Parties from providing them with financial support. The measures therefore form part of the factual matrix of the alleged persecution, while

the operational surveillance and intelligence-gathering physically conducted in the United Kingdom provide its clearest presently documented territorial manifestation under Article 12(2)(a).

## C. Reprisals against family members

**393.** A further component of the programme involved coercive measures against family members remaining in Hong Kong after their relatives had left the territory and continued political activity abroad.

**394.** From the outset, senior officials publicly referred to relatives and friends of wanted persons. The Chief Executive expressly invited relatives and friends to provide information in return for reward. *(See EXHIBIT F5)* The Secretary for Security stated that financial support to wanted persons could be unlawful irrespective of the background of the person providing it. *(See EXHIBIT F9)*

**395.** The subsequent conduct demonstrates that the references to family members were followed by concrete enforcement measures.

**396.** On 11 July 2023, members of Nathan Law's family were taken in for questioning by Hong Kong police. *(See EXHIBIT F23)*

**397.** On 20 July 2023, the homes of relatives of two exiled activists were searched. *(See EXHIBIT F24)*

**398.** On 2 May 2025, a family member of an overseas activist was arrested. *(See EXHIBIT F25)*

**399.** On 26 February 2026, Kwok Yin-sang, the 69-year-old father of exiled activist Anna Kwok, was sentenced to eight months' imprisonment under the Safeguarding National Security Ordinance for attempting to deal with funds belonging to his daughter, the first conviction of its kind. *(See EXHIBIT F26)*

**400.** On 19 August 2025, the sister of Po-fun Chin was reportedly taken to a police station to assist with enquiries, after the Secretary for Security had stated that investigations concerning the wanted "Hong Kong Parliament" persons would be conducted "whether in Hong Kong or elsewhere". *(See EXHIBITS F16 & F27)*

**401.** When the United States Government publicly accused the Hong Kong authorities of harassing family members of wanted persons, the Secretary for Security did not

accept the characterisation but defended the enforcement measures and accused the United States of attempting to "demonise" Hong Kong's actions. *(See EXHIBIT F13)*

**402.** The reprisals against family members form a further coercive component of the overseas pursuit programme. Relatives who were not themselves responsible for the political activities of the exiled persons were questioned, searched, arrested or imprisoned in circumstances directly connected with their family relationships. The measures placed pressure upon the personal and financial relationships necessary to sustain political opponents living abroad and reinforced official threats that wanted persons would be isolated from supporters, financiers, relatives and associates.

**403.** These actions are therefore relevant to the purpose, structure and severity of the alleged persecution. They demonstrate that the programme sought not only to pursue named activists personally but also to impose consequences upon the social and familial networks surrounding them.

## D. Operational surveillance and criminal convictions in the United Kingdom

**404.** The clearest presently documented territorial connection with a State Party arises from covert surveillance, information-gathering and related operational activity conducted within the United Kingdom.

**405.** On 13 May 2024, Chung Biu (Bill) Yuen, Chi Leung (Peter) Wai and Matthew Trickett were charged in the United Kingdom with offences arising from alleged assistance to a Hong Kong intelligence service and foreign-interference activity directed at persons within the United Kingdom.

**406.** The alleged activities included surveillance, information-gathering, operational tasking and other conduct directed against overseas Hong Kong dissidents. Yuen was employed as Office Manager of the Hong Kong Economic and Trade Office in London ("HKETO"). *(See EXHIBIT F28)*

**407.** The initial prosecution materials identified an operational and financial relationship between HKETO and persons carrying out activities in the United Kingdom.

**408.** Wai's company, D5 Security, received three payments from HKETO's London bank account totalling £95,500 between 5 June 2023 and 31 January 2024. Following

an operation in January 2024, Wai received a further £16,170 from HKETO and transferred £1,170 to Trickett on the same day with the reference "SV", understood by the prosecution as referring to surveillance. *(See EXHIBIT F28)*

**409.** The prosecution relied upon communications concerning tasking, coordination, surveillance, reporting and the identification of persons regarded as politically hostile or of interest to the Hong Kong authorities.

**410.** The material included surveillance relating to Nathan Law, instructions concerning United Kingdom political figures and public officials, the collection of information concerning persons in the United Kingdom, and other operational conduct. *(See EXHIBITS F28–F31 & F37)*

**411.** The evidence also concerned misuse of United Kingdom official systems.

**412.** Wai, who was employed as a United Kingdom Border Force officer, used official access to obtain information concerning Chinese and Hong Kong nationals within the United Kingdom in connection with the foreign-intelligence activity. The investigation further identified an attempted operation at a residential address in Pontefract, West Yorkshire, involving deception intended to induce the occupant to open the door. *(See EXHIBIT F31)*

**413.** Matthew Trickett died before trial.

**414.** Following a contested trial at the Central Criminal Court, Yuen and Wai were convicted on 13 May 2026 of assisting a foreign intelligence service contrary to the United Kingdom National Security Act 2023. Wai was additionally convicted of misconduct in public office arising from misuse of official systems. Counter Terrorism Policing stated that the investigation involved more than 20 terabytes of material, including thousands of messages and multilingual digital evidence. *(See EXHIBIT F31)*

**415.** The Hong Kong Government had publicly defended HKETO following the original charges and called for the protection of Yuen's rights and interests. It was also reported to have funded his legal expenses. *(See EXHIBITS F32–F33)*

**416.** The Convenor of the Executive Council, Regina Ip Lau Suk-yee, further stated publicly that the role of the London ETO had "changed" and that it was necessary to monitor the activities of Hong Kong individuals residing overseas, describing this as "intelligence gathering". *(See EXHIBIT F34)*

**417.** Following the convictions, the United Kingdom Security Minister identified the relevant foreign intelligence service as the Hong Kong Police Force and stated that Yuen and Wai had used positions of authority to conduct hostile activity in the United Kingdom on behalf of China. The conduct was described as a "shadow policing operation in the United Kingdom". *(See EXHIBIT F36)*

**418.** On 18 June 2026, Mrs Justice Cheema-Grubb sentenced Wai to a total term of ten years' imprisonment for assisting a foreign intelligence service and misconduct in public office, and Yuen to eight years' imprisonment for assisting a foreign intelligence service. *(See EXHIBIT F37)*

**419.** Notwithstanding the United Kingdom Government's express demand that Yuen's employment at HKETO be terminated immediately, the author of this report is aware of no public confirmation that it was. *(See EXHIBIT F36)* A pro-Beijing political organisation subsequently demonstrated in Yuen's support following his sentencing. *(See EXHIBIT F40)*

**420.** The sentencing materials establish that the conduct was not confined to passive observation or the receipt of publicly available information. It involved organised surveillance, deception, acquisition and transmission of personal and official information, attempted access to financial information, misuse of United Kingdom government systems and operational activity directed against persons physically present within the United Kingdom.

**421.** The Court accepted the prosecution's description of the activities as "shadow policing operations" and treated the conduct, considered as a whole, as deliberate, concerted, sustained and serious. *(See EXHIBIT F37)*

**422.** In relation to Witness N, a democracy and human-rights activist who had sought asylum in the United Kingdom, requests were made concerning a United Kingdom-based "targeted subject" involved in "sensitive" or anti-Chinese activity. Photographs, personal information, official information and IP-address information were transmitted through Yuen and Wai. The judge recognised that the suggestion that Witness N was a fugitive could have damaged or discredited her asylum claim. *(See EXHIBIT F37)*

**423.** The evidence also included surveillance directed at Hong Kong dissidents and activists, including Nathan Law, and concerned their personal information, political activity, public appearances and movements within the United Kingdom.

**424.** The Crown Prosecution Service separately linked the unlawful surveillance activity to the wider overseas bounty system, identifying deliberate tasking, payment and reporting and describing the related activities as "transnational repression", "foreign interference" and "unauthorised surveillance" on British soil. *(See EXHIBIT F35)*

**425.** The matter has also received parliamentary scrutiny. In proceedings in the House of Lords on 30 June 2026, members stated that "activists such as Christopher Mung, Ted Hui, Finn Lau and Nathan Law have all been targeted by the Hong Kong Economic and Trade Office", described the surveillance of United Kingdom citizens and Hong Kong dissidents as "surely intolerable", and drew attention to the case of Chloe Cheung, who was 14 years old when she took part in the demonstrations that led to a bounty being placed upon her. *(See EXHIBIT F39; see also EXHIBIT F34)*

**426.** The United Kingdom evidence provides the clearest territorial manifestation of the alleged transnational persecutory programme. Surveillance, operational tasking, deception, collection and transmission of personal and official information, attempted access to financial information, misuse of United Kingdom government systems and other activities were physically carried out within the United Kingdom against persons identified through their political opposition to the Hong Kong and Chinese authorities. *(See EXHIBITS F28–F37)*

**427.** The connection with the wider programme is substantial. Persons subjected to surveillance included individuals targeted by the Hong Kong bounty system; the activities concerned their political opposition and overseas advocacy; HKETO funds and personnel were connected to the operational apparatus; the United Kingdom Security Minister identified the relevant foreign intelligence service as the Hong Kong Police Force; and the Crown Prosecution Service linked the surveillance activity with the wider bounty system and described it as transnational repression. *(See EXHIBITS F35–F37)*

**428.** Accordingly, the Article 12(2)(a) case rests on organised conduct physically performed in the territory of a State Party. Considered together with the bounties,

statutory disabilities, financial restrictions, intimidation and continuing pursuit of the same political population, the United Kingdom operations provide the territorial component relied upon for the persecution alleged under Article 7(1)(h).

## Part 11. United Nations Findings and Notice to the Authorities

**429.** The conduct described in this report has repeatedly been the subject of findings, communications and urgent interventions by United Nations human-rights mechanisms.

**430.** These materials are important for three reasons. First, they provide independent findings concerning arbitrary detention, prolonged solitary confinement, judicial independence and other practices described elsewhere in this report. Secondly, they demonstrate that the relevant concerns were repeatedly brought to the attention of the Hong Kong and Chinese authorities. Thirdly, the continuation of the same practices following such notice is relevant to the knowledge of senior officials responsible for maintaining and enforcing the national-security system.

### A. Prolonged solitary confinement and the Nelson Mandela Rules

**431.** The United Nations Standard Minimum Rules for the Treatment of Prisoners ("Nelson Mandela Rules") define solitary confinement as confinement for 22 hours or more per day without meaningful human contact.

**432.** "Prolonged solitary confinement" is defined as solitary confinement exceeding 15 consecutive days. *(See Rule 44, EXHIBIT B6)*

**433.** Rule 43 expressly prohibits both indefinite solitary confinement and prolonged solitary confinement. Rule 45 further provides that solitary confinement should not be imposed where a prisoner's mental or physical disability would be exacerbated by the measure. *(See Rules 43–45, EXHIBIT B6)*

**434.** United Nations experts on torture have repeatedly emphasised the severe psychological effects of prolonged isolation and have recognised that prolonged solitary confinement, particularly beyond 15 days, may amount to torture or cruel, inhuman or degrading treatment depending upon the circumstances. *(See EXHIBITS B6–B8)*

**435.** These standards are directly relevant to the treatment of political detainees described in Parts 8 and 9.

**436.** By September 2024, Jimmy Lai had reportedly spent more than three and a half years in solitary confinement. *(See EXHIBIT B5)*

**437.** The duration of his isolation vastly exceeded the 15-day threshold used by the United Nations to define prolonged solitary confinement and occurred alongside the deterioration in his physical condition described in Part 8.

## B. United Nations concerns regarding torture evidence in the Jimmy Lai proceedings

**438.** On 31 January 2024, the United Nations Special Rapporteur on torture and other cruel, inhuman or degrading treatment or punishment publicly addressed allegations that evidence from a key prosecution witness in the Jimmy Lai proceedings had been obtained through torture. (*See EXHIBIT B5, para. 35*)

**439.** The allegation concerned evidence being relied upon in a national-security prosecution carrying exceptionally severe criminal consequences.

**440.** The Special Rapporteur stated that the allegation had been raised with the authorities and expressed concern regarding the apparent absence of an effective investigation into whether torture had been used to obtain the evidence. *(See EXHIBIT B5)*

**441.** The issue is significant beyond the circumstances of the particular witness.

**442.** Evidence obtained through torture is fundamentally incompatible with the right to a fair trial and the absolute prohibition of torture. The alleged use of such evidence in a major national-security prosecution, together with the failure to investigate the underlying allegation, reinforces the concerns regarding custodial abuse and due-process deprivation described in Parts 6, 8 and 9.

**443.** The United Nations High Commissioner for Human Rights, Volker Türk, has separately called for Jimmy Lai's release. *(See EXHIBIT B9)*

## C. Working Group on Arbitrary Detention findings

**444.** The United Nations Working Group on Arbitrary Detention ("WGAD") has repeatedly examined national-security detention in Hong Kong and has issued formal findings that the detention of political defendants was arbitrary.

**445.** As described in Part 9, the Working Group found the detention of Chow Hang-tung and Jimmy Lai arbitrary and called for their release and compensation. *(See EXHIBITS B4 & B5)*

**446.** In Opinion No. 26/2026, the Working Group reached a further detailed finding concerning Owen Chow Ka-shing, one of the defendants in the "Hong Kong 47" prosecution.

**447.** The Working Group found his deprivation of liberty arbitrary under Categories I, II, III and V of its established framework. *(See EXHIBIT B10)*

**448.** Among other matters, it recorded that:

a. Owen Chow had been detained for 761 days before trial;
b. he had been subjected to prolonged solitary confinement;
c. approximately 74 per cent of national-security defendants within the material examined had been denied bail under the reverse presumption contained in Article 42 of the HKNSL;
d. the persons subjected to the national-security bail regime included children, some of whom remained detained for more than a year;
e. the designation of national-security judges by the Chief Executive from a non-public list raised serious concerns regarding judicial independence; and
f. the removal of trial by jury and concentration of national-security cases before designated judges were incompatible with the guarantees of an independent and impartial tribunal under Article 14(1) of the ICCPR.

*(See EXHIBIT B10)*

**449.** The approximately 74 per cent figure recorded by the Working Group reflects the material examined in Opinion No. 26/2026. It is distinct from the approximately 89 per cent figure reported in *EXHIBIT C34*, which derives from a separate analysis of national-security cases. The two figures therefore represent different evidentiary records rather than competing measurements of an identical dataset. Both independently demonstrate that denial of bail has been the predominant outcome in national-security proceedings.

**450.** These findings directly corroborate central factual allegations made in this report.

**451.** The prolonged pre-trial detention, reverse bail presumption, designated-judge system, removal of juries and political character of the underlying prosecutions are not merely allegations arising from political disagreement with the HKSAR Government. They have been independently examined by a United Nations mechanism applying international standards on arbitrary detention.

**452.** The Working Group's conclusions are particularly relevant to Article 7(1)(e), because they establish that major examples of national-security detention have been found arbitrary under international law.

**453.** They are equally relevant to Article 7(1)(h), because the Working Group found that deprivation of liberty arose in connection with the exercise of political and civil rights and included discriminatory treatment based upon political opinion.

## D. Attribution of HKSAR conduct to the People's Republic of China

**454.** Opinion No. 26/2026 also addressed the institutional relationship between the HKSAR and the People's Republic of China.

**455.** Applying Article 4(1) of the International Law Commission's Articles on Responsibility of States for Internationally Wrongful Acts, the Working Group treated the conduct of the HKSAR Government as conduct attributable to the People's Republic of China as a State organ for the purposes of State responsibility. *(See EXHIBIT B10)*

**456.** This finding is consistent with the institutional structure described in Part 4, under which national-security policy in Hong Kong operates through HKSAR institutions together with bodies established under the authority of the Central People's Government.

**457.** It reinforces the characterisation of the conduct described in this report as State action rather than a collection of unrelated acts by autonomous individuals or institutions.

## E. Repeated international notice and continued enforcement

**458.** The Hong Kong authorities have repeatedly received formal notice from United Nations mechanisms that central aspects of the national-security system are considered incompatible with Hong Kong's international human-rights obligations.

**459.** The HKSAR Government has repeatedly rejected such findings.

**460.** In responses to concluding observations issued under the ICCPR, the Government characterised significant portions of United Nations criticism as unfounded, misleading or politically motivated. *(See EXHIBIT D15)*

**461.** These exchanges establish repeated and explicit international notice concerning the legality and human-rights consequences of the national-security system.

**462.** By this stage, the authorities had repeatedly been placed on explicit notice that United Nations mechanisms considered:

a. national-security detention arbitrary in identified cases;
b. the reverse bail regime incompatible with international standards;
c. prolonged solitary confinement capable of producing severe and irreversible harm;
d. restrictions upon judicial independence incompatible with Article 14 of the ICCPR;
e. the prosecution of protected political activity incompatible with fundamental civil and political rights; and
f. allegations of torture and custodial abuse to require effective investigation.

**463.** The national-security framework nevertheless continued to operate and expand.

**464.** The Safeguarding National Security Ordinance enacted in March 2024 introduced additional investigative, detention, penal and extraterritorial powers. The prosecution and imprisonment of political defendants continued. The "specified absconder" regime and overseas pursuit programme were implemented and expanded. Restrictions upon national-security prisoners and former prisoners likewise continued.

**465.** The persistence and expansion of the same measures after repeated international notice further supports the inference that their continuation reflected State policy rather than inadvertence, institutional error or isolated misconduct. The authorities were repeatedly informed that core components of the national-security system were considered arbitrary, discriminatory or incompatible with fundamental rights, yet the

system was maintained, expanded through additional legislation, and extended through new custodial, financial and extraterritorial measures. This sequence is directly relevant to both knowledge of the attack and the existence of a policy to maintain and further the course of conduct described in Part 2.

**466.** For the purposes of Article 7, this evidence is relevant to knowledge of the broader course of conduct. Senior officials responsible for publicly defending, administering and expanding the national-security framework cannot plausibly be characterised as unaware that the same practices had repeatedly been identified by authoritative international mechanisms as arbitrary, discriminatory or incompatible with fundamental rights.

## Part 12. Relevant International Criminal Law Precedents and Contemporary ICC Practice

**467.** The conduct described in this report does not require the creation of a novel category of crime against humanity.

**468.** International criminal jurisprudence has repeatedly recognised that crimes against humanity may be committed through imprisonment, persecution, discriminatory legal systems, detention institutions and the organised use of State or quasi-State power against civilian populations.

The most relevant authorities concern five issues central to this report:

a. territorial jurisdiction over transboundary crimes;
b. imprisonment and severe deprivation of liberty;
c. persecution through deprivation of fundamental rights;
d. the use of legal, judicial and detention institutions as instruments of an attack; and
e. the fact that conduct presented domestically as law enforcement remains capable of constituting crimes against humanity.

### A. Bangladesh/Myanmar – territorial jurisdiction over a crime partly committed in a State Party

**469.** The ICC's decisions in the Bangladesh/Myanmar Situation establish the central territorial principle relevant to this report.

**470.** Myanmar is not a State Party to the Rome Statute, whereas Bangladesh is.

**471.** In its decision of 6 September 2018, Pre-Trial Chamber I held that the ICC could exercise territorial jurisdiction over the alleged deportation of the Rohingya where an element of the crime occurred on the territory of Bangladesh.

**472.** Deportation necessarily involved the forced crossing of an international border. Although much of the coercive conduct occurred in Myanmar, completion of the alleged crime occurred through the victims' entry into Bangladesh.

**473.** The ICC therefore held that Article 12(2)(a) did not require every element of a crime to occur within the territory of a State Party.

**474.** The principle is directly relevant here.

**475.** Where constituent conduct or an element of an alleged crime against humanity is committed on the territory of a State Party, the fact that other components of the crime or the underlying policy originate in a non-State Party does not defeat territorial jurisdiction.

**476.** As explained in Parts 1 and 10, this report relies principally upon actual conduct within States Parties – particularly surveillance, operational tasking, information-gathering, acquisition and transmission of personal information, misuse of United Kingdom government systems and related operations in the United Kingdom – rather than upon a general theory of extraterritorial "effects".

## B. Lithuania/Belarus – contemporary application to transboundary political persecution

**477.** The Situation in the Republic of Lithuania/Republic of Belarus provides an especially relevant contemporary application of the same jurisdictional principle.

**478.** Belarus is not a State Party to the Rome Statute. Lithuania is.

**479.** On 30 September 2024, Lithuania referred the situation to the ICC, alleging crimes against humanity against actual or perceived opponents of the Belarusian Government, including deportation, persecution and other inhumane acts.

**480.** The referral alleged that the underlying policy and substantial conduct originated in Belarus but that part of the elements of the crimes occurred on the territory of Lithuania.

**481.** On 12 March 2026, the Office of the Prosecutor concluded its preliminary examination and opened an investigation.

**482.** The Office found a reasonable basis to believe that coercive acts resulting in deportation formed part of a course of conduct against actual or perceived political opponents pursuant to or in furtherance of a State policy and that the alleged conduct had been encouraged or approved at the highest levels of the Belarusian Government.

**483.** The investigation expressly encompasses transboundary crimes committed since 1 May 2020 where at least one element of the crime occurred on Lithuanian territory.

**484.** It includes alleged persecution on political grounds through deportation.

**485.** The situation is particularly instructive because the ICC's jurisdiction does not depend upon the territorial State being the place in which the principal State policy was formulated.

**486.** A policy alleged to originate at the highest level of a non-State Party may fall within the ICC's jurisdiction where the resulting crime contains a constituent territorial component within a State Party.

**487.** This principle directly informs the territorial analysis of the overseas persecution described in Part 10.

## C. Krnojelac and ICTY jurisprudence – imprisonment as a crime against humanity

**488.** Article 5(e) of the Statute of the International Criminal Tribunal for the former Yugoslavia expressly recognised imprisonment as a crime against humanity.

**489.** In *Prosecutor v. Krnojelac*, the ICTY examined the organised detention of civilians in a prison facility and treated arbitrary imprisonment and persecution as distinct forms of criminal conduct capable of constituting crimes against humanity.

**490.** The legal significance of imprisonment does not depend upon the existence of killing or extermination.

**491.** Severe deprivation of liberty becomes criminal under international criminal law where civilians are imprisoned arbitrarily or otherwise in violation of fundamental rules of international law and the conduct forms part of the requisite attack against a civilian population.

**492.** The jurisprudence is directly relevant to the detention system described in this report: mass arrests, reverse bail presumptions, prolonged pre-trial detention, imprisonment for protected political activity and the use of differentiated national-security procedures against an identifiable political population.

## D. Al Hassan – persecution through an institutional system of punishment and deprivation of rights

**493.** The ICC judgment in *The Prosecutor v. Al Hassan Ag Abdoul Aziz Ag Mohamed Ag Mahmoud* provides an important modern example of persecution implemented through an institutional system of rules, policing, punishment and adjudication.

**494.** In June 2024, the ICC convicted Al Hassan of crimes against humanity including torture, persecution and other inhumane acts arising from the system imposed upon the civilian population of Timbuktu.

**495.** The relevant apparatus included an Islamic police force and tribunal, enforcement of ideologically imposed rules, detention, corporal punishment, discriminatory restrictions and punishment for conduct contrary to the governing authorities' ideological requirements.

**496.** The ICC treated the cumulative system of rules, enforcement and punishment as capable of forming part of an attack and of persecution against the civilian population.

**497.** Al Hassan is significant here because persecution need not take the form of indiscriminate physical violence alone.

**498.** A population may be persecuted through an institutional system that identifies persons according to protected characteristics or status, deprives them of fundamental rights, subjects them to punishment and uses policing and adjudicative machinery to enforce the discriminatory order.

**499.** That principle directly informs the assessment of the national-security system described in Parts 2, 4, 6, 8 and 9.

## E. El Hishri – organised detention institutions as machinery for crimes against humanity

**500.** *The Prosecutor v. Khaled Mohamed Ali El Hishri* provides an especially recent example of alleged crimes against humanity centred upon an institutional detention system.

**501.** The case concerns conduct at Mitiga Prison and the Mitiga Compound in Tripoli between 1 May 2014 and 30 June 2020.

**502.** On 16 July 2026, ICC Pre-Trial Chamber I unanimously confirmed all 17 charges against El Hishri and committed him to trial.

**503.** The confirmed charges encompass imprisonment, torture, other inhumane acts, rape and other forms of sexual violence, murder and attempted murder, enslavement and persecution.

**504.** The Chamber found substantial grounds to believe that the alleged crimes had been committed against thousands of persons detained for prolonged periods within the institutional structure of Mitiga Prison.

**505.** The case demonstrates the central relevance of detention institutions to crimes-against-humanity analysis.

**506.** Where imprisonment operates together with torture, sexual abuse, discriminatory treatment and other serious deprivations within an organised custodial system, the prison itself may function as a principal mechanism through which the broader attack is implemented.

**507.** The evidence concerning San Uk Ling, prolonged political detention, arbitrary imprisonment identified by the WGAD, solitary confinement, the Pik Uk assault and the wider treatment of political prisoners described in Parts 3 and 9 must be examined in that legal context.

## F. The Judges' Trial – legal and judicial machinery can participate in persecution

**508.** The post-Second World War case *United States of America v. Josef Altstötter et al.*, commonly known as the Judges' Trial, established the fundamental proposition that persons operating within a legal or judicial system are not insulated from criminal responsibility where that system is deliberately used as machinery for persecution.

**509.** The defendants included senior officials of the German Ministry of Justice, prosecutors and judges accused of participating in the implementation of discriminatory and politically repressive laws and judicial practices.

**510.** The case demonstrates that the formal appearance of legality does not determine the international criminal character of the conduct.

**511.** Arrest, prosecution, adjudication and imprisonment carried out through courts and legislation may form part of persecution where legal institutions are deliberately employed to deprive targeted populations of fundamental rights.

**512.** The relevance of this precedent to the present report lies in that principle.

**513.** The national-security laws, prosecutions and judicial measures described here cannot be excluded from Article 7 analysis merely because they were enacted as legislation, implemented through formal criminal proceedings or confirmed through judicial decisions.

**514.** The decisive question remains how the legal system operated in practice, whom it targeted, what rights it deprived, and whether its operation formed part of the broader attack described in Part 2.

## G. Afghanistan – persecution through systematic legal and administrative deprivation of fundamental rights

**515.** The ICC proceedings concerning Taliban leaders in Afghanistan provide a contemporary example of persecution founded upon systematic deprivation of fundamental rights through law, policy and administrative measures.

**516.** On 8 July 2025, the ICC issued arrest warrants for Taliban Supreme Leader Haibatullah Akhundzada and Chief Justice Abdul Hakim Haqqani in relation to the crime against humanity of persecution on gender grounds.

**517.** The proceedings concern a system in which women, girls and other targeted persons were subjected to severe deprivation of fundamental rights through discriminatory rules and their enforcement, including restrictions upon education, movement, expression, private and family life, assembly, conscience and participation in public life.

**518.** The significance of the Afghanistan proceedings is that persecution under Article 7(1)(h) is not confined to physical assault or killing.

**519.** Systematic State or governing-authority measures that deliberately strip an identifiable population of fundamental rights may themselves constitute the core of persecution when the statutory elements are met.

**520.** That principle is directly relevant to the combination of political imprisonment, exclusion from political participation, suppression of organisations and media, restrictions upon expression and association, differentiated national-security procedures and continuing controls imposed upon political opponents described in this report.

## H. The Philippines – law-enforcement operations can constitute an Article 7 attack

**521.** The ICC investigation and proceedings in the Situation in the Republic of the Philippines further demonstrate that conduct framed domestically as ordinary law enforcement is not thereby removed from Article 7.

**522.** The Philippines maintained formal governmental institutions, courts, prosecutors and a functioning criminal-justice system throughout the period examined by the ICC.

**523.** The alleged crimes nevertheless arose from an organised campaign implemented through police and law-enforcement structures in the context of the "war on drugs".

**524.** The ICC proceeded on the basis that State law-enforcement machinery can be used as the operational mechanism of a widespread or systematic attack against a civilian population.

**525.** The legal significance is straightforward: domestic characterisation of conduct as policing, national security, prosecution or criminal justice does not determine its status under the Rome Statute.

**526.** Where State institutions are systematically deployed against a civilian population in a manner satisfying Article 7, the existence of statutes, arrest warrants, prosecutors, courts or formal convictions does not prevent the underlying conduct from constituting crimes against humanity.

## I. Al Mahdi – Rome Statute crimes are not confined to bodily harm or loss of life

**527.** In *The Prosecutor v. Ahmad Al Faqi Al Mahdi*, the ICC convicted the accused of the war crime of intentionally directing attacks against historic monuments and buildings dedicated to religion in Timbuktu. The charge concerned the deliberate

attack and destruction of ten protected religious and historic sites and did not depend upon proof that any individual had been killed or physically injured.

**528.** Although *Al Mahdi* concerned a war crime under Article 8 rather than a crime against humanity under Article 7, it illustrates a broader feature of the Rome Statute: international criminal responsibility is not confined to conduct causing death or bodily injury. The Statute protects other fundamental interests whose deliberate and sufficiently serious violation may itself constitute an international crime.

**529.** The case therefore provides additional support for rejecting any assumption that the gravity of conduct under the Rome Statute must be measured principally by a body count. In the present report, however, the more directly applicable authorities remain those concerning imprisonment and persecution as crimes against humanity, including *Krnojelac*, *Al Hassan* and the ICC proceedings concerning Afghanistan.

## J. Cumulative significance of the precedents

**530.** These authorities establish a coherent body of international criminal-law principles directly applicable to the facts presented in this report.

**531.** First, Bangladesh/Myanmar and the Lithuania/Belarus Situation establish that the ICC may exercise territorial jurisdiction over transboundary crimes where a constituent element occurs within a State Party even though the principal policy or substantial conduct originates in a non-State Party.

**532.** Secondly, *Krnojelac* confirms that arbitrary and institutionally organised imprisonment may itself constitute a crime against humanity where imposed as part of an attack against a civilian population.

**533.** Thirdly, Al Hassan and the Afghanistan proceedings demonstrate that persecution may be implemented through a system of discriminatory rules, policing, prosecution, punishment and severe deprivation of fundamental rights.

**534.** Fourthly, El Hishri demonstrates the role that an organised detention apparatus can play in the commission of imprisonment, torture, sexual violence, persecution and other crimes against humanity.

**535.** Fifthly, the Judges' Trial establishes that legal and judicial institutions are not inherently neutral for international criminal-law purposes and may themselves

participate in persecution when deliberately used to deprive a targeted population of fundamental rights.

**536.** Finally, the Philippines Situation confirms that conduct undertaken through formal law-enforcement structures remains subject to Article 7 where those structures are used as mechanisms of a widespread or systematic attack.

**537.** The common principle is that international criminal law examines the substance and operation of State power rather than the domestic label attached to it.

**538.** A system of arrest, detention, prosecution, adjudication, imprisonment and continuing coercion directed against an identifiable political population may constitute crimes against humanity notwithstanding that individual measures are formally authorised by domestic legislation or implemented through established State institutions.

**539.** Neither Article 7 of the Rome Statute nor the jurisprudence described above requires murder, extermination, mass killing or armed conflict as a prerequisite to crimes against humanity. Imprisonment or other severe deprivation of physical liberty and persecution are themselves expressly enumerated crimes under Articles 7(1)(e) and 7(1)(h). Where those acts are committed as part of a widespread or systematic attack directed against a civilian population, with the requisite knowledge and nexus, they may constitute crimes against humanity independently of whether the attack includes killing or exterminatory conduct.

**540.** That principle is central to the present report. Its principal case is not dependent upon proving mass killing. It rests upon the alleged systematic use of arrest, prolonged detention, prosecution, imprisonment, discriminatory legal restrictions and continuing coercive measures to deprive an identifiable political population of physical liberty and other fundamental rights.

## Part 13. Complementarity and Admissibility under Article 17

**541.** The admissibility of any prospective case arising from this report must be assessed under Article 17 of the Rome Statute by reference to the person and conduct forming the potential case before the ICC.

**542.** The relevant inquiry is whether a State with jurisdiction is investigating or prosecuting the same person for substantially the same conduct. The existence of domestic proceedings concerning the general situation, related events or different participants does not by itself make a prospective ICC case inadmissible.

### A. United Kingdom proceedings

**543.** The criminal proceedings against Chung Biu (Bill) Yuen and Chi Leung (Peter) Wai constitute significant domestic accountability for part of the conduct described in Part 10.

**544.** Following a contested trial, both men were convicted for assisting a foreign intelligence service through conduct carried out within the United Kingdom, and Wai was additionally convicted of misconduct in public office. The proceedings produced extensive evidence concerning surveillance, operational tasking, payments, collection and transmission of personal information, misuse of official systems and the relationship between the operational activity and Hong Kong governmental interests. *(See EXHIBITS F28–F37)*

**545.** Those proceedings are highly significant evidence of the existence, organisation and territorial operation of the overseas apparatus. They do not, however, address the same potential cases as those arising against the principal senior officials identified in this report.

**546.** The materials presently available identify no United Kingdom investigation or prosecution of John Lee Ka-chiu, Chris Tang Ping-keung or the other senior officials for substantially the same conduct alleged against those persons.

**547.** The distinction turns on persons and conduct, not the domestic offence label. A domestic proceeding may engage Article 17 without charging "crimes against humanity" if it genuinely addresses the same person and substantially the same underlying conduct.

## B. Proceedings within Hong Kong

**548.** The extensive criminal proceedings conducted in Hong Kong against protesters, journalists, opposition politicians, activists and other persons described in this report do not constitute domestic investigations of the officials alleged to have designed, directed, implemented, facilitated or contributed to the alleged attack.

**549.** The prosecution of an alleged victim of persecution cannot substitute for investigation of the persons alleged to have persecuted that individual.

**550.** The materials submitted further identify substantial deficiencies in accountability for serious allegations arising from police conduct during the 2019 protests. The statutory police complaints mechanism lacked independent investigative powers appropriate to the scale of the allegations; the International Expert Panel withdrew after concluding that the deficiencies in powers, capacity and independence were fundamental; demands for an independent commission of inquiry were rejected; and private prosecutions concerning serious violence against protesters were terminated through intervention by the Department of Justice. *(See EXHIBITS C20–C32)*

**551.** At the same time, domestic accountability has occurred in particular instances. The correctional officer involved in the penetrative assault upon an 18-year-old remand prisoner at Pik Uk Correctional Institution was prosecuted and convicted. *(See EXHIBIT C34)*

**552.** That prosecution is relevant to any prospective case concerning that individual and the same assault. It does not make inadmissible a different case concerning a senior official alleged to bear responsibility for separate or broader conduct.

## C. Senior-level responsibility

**553.** No domestic proceeding identified in the materials presently before the author investigates or prosecutes John Lee Ka-chiu or Chris Tang Ping-keung for substantially the same conduct forming the basis of the potential individual responsibility described in this report.

**554.** The conduct attributed to those officials concerns, among other matters, senior authority over the national-security apparatus, implementation and public endorsement of measures directed against the identified political population, the continuing operation of the detention and enforcement system, and the overseas pursuit programme described in Part 10.

**555.** Domestic proceedings against operational actors, individual correctional officers or political defendants do not address those same potential cases.

**556.** The same principle applies to other persons identified for examination. Admissibility must be determined by comparing the particular person and substantially the same conduct at issue before the ICC with any relevant domestic investigation or prosecution.

## D. Conclusion

**557.** The present record therefore identifies no domestic investigation or prosecution that would render the principal prospective cases described in this report inadmissible under Article 17.

**558.** The United Kingdom has genuinely prosecuted particular operational actors for conduct carried out on its territory, and isolated instances of abuse have resulted in domestic prosecution in Hong Kong. Those proceedings are material to complementarity where a prospective ICC case concerns the same person and substantially the same conduct.

**559.** They do not displace examination of different senior officials for different and broader conduct that has not itself been the subject of domestic investigation or prosecution.

**560.** Accordingly, on the information presently available, complementarity does not bar further examination of the principal potential cases identified in this report.

## Part 14. Persons Identified for Examination of Individual Criminal Responsibility

**561.** The evidence submitted with this report identifies public officials whose conduct supports examination of individual criminal responsibility under Article 25 and, where the requirements of superior responsibility are established, Article 28 of the Rome Statute.

**562.** The clearest present evidence of senior executive responsibility concerns Chief Executive John Lee Ka-chiu and Secretary for Security Chris Tang Ping-keung. Their official authority, repeated public statements, participation in the development and implementation of national-security policy, oversight of relevant State institutions, and direct involvement in the overseas pursuit programme place them at the centre of the conduct described in this report.

**563.** For judicial and other legal officials, responsibility is assessed person by person by reference to the proceedings in which each participated, the decisions made, the broader institutional context, knowledge of the attack described in Part 2 and the nature of the contribution to the deprivation of fundamental rights.

**564.** Detailed evidence and proposed modes of liability are set out separately in the accompanying Individual Liability materials.

### A. Principal senior executive officials

**John LEE Ka-chiu (李家超)**

**565.** John Lee served as Secretary for Security during the 2019 protest period, subsequently became Chief Secretary for Administration, and has served as Chief Executive of the HKSAR since 2022.

**566.** The evidence submitted with this report concerns his senior authority during the 2019 crackdown, his subsequent leadership of the HKSAR national-security structure, his role in the institutional operation of the national-security system, and his direct and repeated endorsement of the extraterritorial pursuit of political dissidents.

**567.** As Chief Executive, Lee publicly declared that overseas wanted persons would be pursued "for life", stated that they should live "in fear every day", invited relatives and friends to provide information concerning them in return for reward, and affirmed

that their activities would continue to be monitored. *(See Part 10 & EXHIBITS F5–F7)*

**568.** Taken together, the present evidence provides a substantial basis for examining John Lee's individual criminal responsibility under Article 25 of the Rome Statute in connection with the formulation, maintenance, endorsement and implementation of the alleged attack, including its extraterritorial component. His successive senior positions, statutory authority within the national-security structure, public direction and endorsement of the overseas pursuit programme, express support for lifelong pursuit and extraterritorial action, and role at the apex of the HKSAR executive also warrant examination under Article 28 to the extent that the evidence establishes the requisite effective authority and control over relevant subordinates and the other statutory elements of superior responsibility.

**Chris TANG Ping-keung (鄧炳強)**

**569.** Chris Tang held senior command positions within the Hong Kong Police Force during the 2019 protest period, became Commissioner of Police in November 2019 and has served as Secretary for Security since 2021.

**570.** His conduct connects the principal stages of the alleged attack: the 2019 policing campaign, subsequent national-security enforcement, detention and correctional institutions under the Security Bureau, and the overseas pursuit programme.

**571.** Tang has personally announced and exercised statutory powers against "specified absconders".

**572.** He publicly stated that authorities would identify the contacts, associates and financiers of wanted political activists "in Hong Kong or overseas", warned persons abroad against assisting or financing them, stated that wanted persons would remain subject to lifelong pursuit, and expressly applied the financial-support prohibitions to persons residing in the United Kingdom. *(See Part 10 & EXHIBITS F8–F22)*

**573.** Taken together, the present evidence provides a substantial basis for examining Chris Tang's individual criminal responsibility under Article 25 of the Rome Statute. His conduct includes direct exercise of statutory powers against specified political opponents, public direction concerning their contacts, associates and financiers overseas, explicit extension of financial prohibitions to persons residing in the United

Kingdom, repeated endorsement of lifelong pursuit, and senior institutional authority spanning the police, national-security enforcement and the security apparatus described in this report. His successive command and executive positions further warrant examination under Article 28 to the extent that the evidence establishes the requisite effective authority and control and the remaining elements of superior responsibility.

## B. Judicial and legal officials whose conduct warrants further examination

**574.** The following judicial and legal officials are also identified in the accompanying materials:

a. Roberto Alexandre Vieira RIBEIRO (李義)
b. Joseph Paul FOK (霍兆剛)
c. Frank STOCK (司徒敬)
d. Patrick CHAN Siu-oi (陳兆愷)
e. Amanda Jane WOODCOCK (胡雅文)
f. KWOK Wai-kin (郭偉健)
g. CHAN Kwong-chi, Stanley (陳廣池)
h. CHAN Hing Wai, Andrew (陳慶偉)
i. LEE Wan Tang, Alex (李運騰)
j. CHAN Jong Herng, Johnny (陳仲衡)
k. Anna LAI Yuen-kee (黎婉姬)
l. LAW Tak Chuen, Peter (羅德泉)
m. SO Wai-tak, Victor (蘇惠德)
n. Susana Maria D'ALMADA REMEDIOS (李素蘭)
o. TAM Yiu-ho, William (譚耀豪)

**575.** These judicial and legal officials are identified because the accompanying evidence concerns their participation in specific national-security or politically sensitive proceedings, including decisions relating to imprisonment, bail, political expression, procedural rights and the implementation or development of the national-security legal framework.

**576.** Their potential responsibility therefore turns on their individual acts, contribution and mental element rather than on judicial office as such.

**577.** The relevant questions include whether a particular official knowingly and intentionally contributed to the operation of the attack described in Part 2; whether the official's conduct materially facilitated imprisonment or political persecution; the nature, repetition and significance of the relevant acts; and the extent to which those acts were performed with knowledge of the broader course of conduct against the targeted civilian population.

**578.** The Judges' Trial confirms that the judicial office does not place participation in persecution outside the reach of international criminal law; responsibility nevertheless attaches through the conduct and mental element of the individual official.

**579.** The detailed factual allegations relating to each person, including particular cases, judgments, institutional roles and proposed modes of liability, are therefore addressed in the separate Individual Liability submission rather than repeated in this Factual Summary.

## C. Relationship between the identified individuals and the alleged attack

**580.** The individuals identified above occupied different positions within the institutions through which the alleged attack was implemented.

**581.** The evidence concerning senior executive officials relates principally to policy, command and institutional authority, public direction and endorsement, implementation of national-security measures, and the extraterritorial pursuit programme.

**582.** The evidence concerning judicial and legal officials relates principally to the operation of the legal machinery through which targeted persons were detained, denied bail, prosecuted, convicted and imprisoned.

**583.** These functions correspond to the institutional pattern described throughout this report:

a. police and security agencies identify, investigate and arrest targeted persons;
b. prosecutors invoke national-security and sedition legislation against political activity;

c. statutory provisions impose differentiated bail, detention and procedural rules;
d. designated courts adjudicate the resulting prosecutions;
e. correctional institutions implement imprisonment and additional restrictions;
f. executive authorities maintain, defend and expand the system; and
g. the same security apparatus pursues members of the targeted political population after they leave Hong Kong.

**584.** Individual criminal responsibility under the Rome Statute ultimately attaches to persons rather than institutions.

**585.** The purpose of identifying the persons above is therefore to direct examination towards the officials whose acts, authority and institutional roles connect them to the specific components of the alleged attack documented in this report.

**586.** The evidence is strongest at present in relation to the senior executive role and direct conduct of John Lee Ka-chiu and Chris Tang Ping-keung.

**587.** The evidence concerning the remaining officials requires assessment on the basis of each person's particular acts, knowledge and contribution, as detailed in the accompanying Individual Liability materials.

**588.** The institutional structure described above explains how the alleged attack operated; individual responsibility is then assessed through the acts, authority, knowledge and contribution of each identified person under the applicable provisions of the Rome Statute.